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Article 12 and Dignity

1 INTRODUCTION

Chapter 2 described how the progress of disability rights has frequently been charted as a journey from paternalism to autonomy, from exclusion to inclusion and from discrimination to equality. This is reflected in, and driven by, models of disability that have developed from the charity and medical models to the social model and in decision-making frameworks that have moved from institutionalisation to guardianship to supported decision-making. Chapter 3 described how the promotion of disability as a human rights issue began with acknowledging the absence of people with disability from existing human rights agendas, together with their positioning as objects of socio-economic policy at a time when socio-economic rights were not perceived as 'true' human rights.

Chapter 3 also described how civil-political rights have been underpinned by the principle of autonomy, a principle conceived of as the right to be left alone, and how a prescription that the right to legal capacity requires the abolition of guardianship assumes that guardianship in all cases constitutes rights-denying interference. Chapter 4 described how legal capacity is related to a liberal notion of autonomy as rationality, independence and self-determination, as exemplified in the abstract ideal of the bounded individual. It described how the link between rationality, autonomy and personhood has traditionally led to the relegation of adults with disability to the status of 'non-persons'. Some writers have attempted to include adults within personhood by refashioning autonomy as interdependence or shared personhood. I argue that these ultimately fail because they continue to privilege rationality and fail to recognise the residual impacts of impairment.

While the dominant narrative of disability rights development has charted a journey from paternalism to autonomy and from social policy to civil-political human rights, recognition of the residual impacts of impairment and the principle of indivisibility disrupts this trajectory. To include adults with cognitive disability as persons, an alternative basis for personhood must be found, and this chapter proposes dignity. Section 2 describes the widespread references in international and regional

human rights instruments to dignity as a fundamental human rights value, and how this is reiterated in the CRPD. It considers the features of dignity in the text of the CRPD and concludes that dignity is expressly stated as inherent and as a legal principle (not a right) that influences the interpretation of the convention. It also questions what dignity means in the CRPD and proposes five dimensions of dignity, which are considered, developed and explained in Section 3, through identifying and drawing on key features of dignity, found in the philosophical and legal literature and as illustrated in jurisprudence.

Section 4 considers the literature on dignity and Article 12, which typically associates dignity with either autonomy or equality, with outlying analyses grounding dignity in vulnerability, the ethic of care or social justice. It considers and acknowledges the weight of arguments against developing dignity as a legal principle but responds to these criticisms by reiterating the proposed five-dimensional approach as a contribution, and by proposing a case-by-case approach to give determinacy and meaning to dignity. Dignity's prominent positioning in human rights law and theory, as well as in the Purpose and General Principles clauses of the CRPD, gives legitimacy and even imposes some urgency on this project. The chapter concludes by considering how the application of five-dimensional dignity would apply to the case of Sesha, a woman with a severe and profound cognitive disability, whose decisions are often made with and for her by substitutes.

2 DIGNITY IN THE TEXT OF HUMAN RIGHTS INSTRUMENTS: AN OVERVIEW

Commentators have written that the idea of twentieth-century human rights was founded on the notion of human dignity,[1] shaped significantly in response to the atrocities of Nazism.[2] Human rights are said to be 'rooted' in human dignity.[3] Dignity has been described as a 'central organising principle' for human rights[4] and as the 'anchor norm of human rights'.[5] The affirmation that dignity is foundational

[1] Klaus Dicke, 'The Founding Function of Human Dignity in the Universal Declaration of Human Rights' in Eckart Klein and David Kretzmer (eds), *The Concept of Human Dignity in Human Rights Discourse* (Kluwer Law International, 2002) 111.

[2] Brenda Hale, 'Dignity' (2009) 31(2) *Journal of Social Welfare and Family Law* 101, 104; Emily Julia Kakoullis and Yoshikazu Ikehara, 'Article 1: Purpose' in Ilias Bantekas et al (eds), *The UN Convention on the Rights of Persons with Disabilities: A Commentary* (Oxford University Press, 2018) 35, 50; Theresia Degener, 'A New Human Rights Model of Disability' in Valentina Della Fina, Rachele Cera and Giuseppe Palmisano (eds), *The United Nations Convention on the Rights of Persons with Disabilities: A Commentary* (Springer International Publishing, 2017) 4148.

[3] Jack Donnelly, *Universal Human Rights in Theory and Practice* (Cornell University Press, 3rd ed, 2013) 28.

[4] Christopher McCrudden, 'Human Dignity and Judicial Interpretation of Human Rights' (2008) 19(4) *European Journal of International Law* 655, 675.

[5] Gerard Quinn and Theresia Degener, *Human Rights and Disability: The Current Use and Future Potential of United Nations Human Rights Instruments in the Context of Disability*

to human rights is reiterated in human rights instruments both within the UN system and regionally, and the CRPD is no exception.

2.1 *United Nations and Regional Human Rights Instruments*

The Charter establishing the UN was signed on 26 June 1945 and came into force on 24 October 1945 ('the UN Charter'). Its Preamble begins with:

> We the peoples of the United Nations determined:
>
> - To save succeeding generations from the scourge of war, which twice in our lifetime has brought untold sorrow to mankind, and
> - To reaffirm faith in fundamental human rights, in the dignity and worth of the human person, in the equal rights of men and women and of nations large and small …[6]

This foundational document gives prominence to dignity, where it is associated with human worth and equality, associations reflected consistently across the jurisprudence and commentary on dignity.[7] In 1948, the UN Declaration followed the UN Charter by foregrounding dignity both in the opening of its Preamble and in its first substantive article. The Preamble recognises 'the inherent dignity and … the equal and inalienable rights of all members of the human family [as] the foundation of freedom, justice and peace in the world', and Article 1 states: 'All human beings are born free and equal in dignity and rights.'[8] The ICCPR and the ICESCR both include these words taken directly from the UN Declaration's Preamble and add that the rights in each covenant 'derive from the inherent dignity of the human person'.[9] The CRPD opens by reaffirming the principles of the UN Charter, including recognition of the 'inherent dignity and worth and equal … rights of all people'.[10] None of these instruments defines

(United Nations, 2002) 14; Sarah Arduin, 'Article 3: General Principles' in Ilias Bantekas, Michael Ashley Stein and Anastasiou Dimitris (eds), *The UN Convention on the Rights of Persons with Disabilities: A Commentary* (Oxford University Press, 2018) 85, 91.

[6] *UN Charter*, 1 UNTS XVI (24 October 1945) ('UN Charter').

[7] See further below.

[8] *Universal Declaration of Human Rights, GA Res 217A (III), UN GAOR, 3rd sess, 183rd pen mtg, UN Doc A/810 (10 December 1948)* ('*UN Declaration*').

[9] *International Covenant on Civil and Political Rights, opened for signature 19 December, 1966, 999 UNTS (entered into force 23 March 1976)* ('*ICCPR*'); see also *International Covenant on Economic, Social and Cultural Rights, opened for signature 16 December, 1966, 993 UNTS 3 (entered into force 3 January 1976)* ('*ICESCR*'); and *Convention on the Elimination of All Forms of Discrimination against Women, opened for signature 1 March 1980, 1249 UNTS 8 (entered into force 3 September 1981)* Preamble para 1; *Convention on the Elimination of All Forms of Discrimination against Women, opened for signature 1 March 1980, 1249 UNTS 8 (entered into force 3 September 1981)* Preamble para 3.

[10] Preamble para 1.

dignity, but all of them describe it as 'inherent' and draw links between dignity, worth, equality and the human person.

McCrudden provides a catalogue of references to human dignity in regional human rights instruments,[11] as well as in constitutional documents.[12] The *European Convention on Human Rights* ('ECHR') is one of the few human rights instruments that does not expressly recognise dignity in its text.[13] However, in *Pretty v United Kingdom* ('*Pretty*'), the European Court of Human Rights affirmed that: 'The very essence of the Convention is respect for human dignity and human freedom.'[14] The incorporation of the ECHR into UK law by the *Human Rights Act* 1998 (UK) has led to consideration and development of the concept of dignity in UK law, and this has garnered significant attention in the wider jurisprudence and literature on dignity.[15]

2.2 *Dignity in the Text of the CRPD*

The Ad Hoc Committee was originally tasked with considering: 'proposals for a comprehensive and integral international convention to promote and protect the rights *and dignity* of persons with disabilities'[16] [emphasis added]. The word 'dignity' appeared not only in the title of the Ad Hoc Committee but in the title of early working drafts of the convention. The term was ultimately dropped from the title at the seventh session of the Ad Hoc Committee because of concern that reference to 'promoting' dignity implied that dignity was not already inherent in people with disability but had to be acquired.[17]

[11] 'Increasingly, dignity language has become embedded in the texts of regional human rights instruments. Dignity is central to the Preambles to the principal Inter-American, Arab, African, and (some) European human rights instruments.' McCrudden, 'Human Dignity and Judicial Interpretation of Human Rights' (n 4) 671.

[12] 'In the 1970s, with the fall of the dictatorships in Greece, Spain, and Portugal, dignity was incorporated into the new democratic constitutions.' Also, following the fall of the Berlin Wall, dignity was incorporated in the German Constitution, which later influenced its insertion in the post-Apartheid South African Constitution and 'Israel's Basic Law on Human Dignity': ibid 672–3.

[13] *European Convention for the Protection of Human Rights and Fundamental Freedoms, as amended by Protocols Nos 11 and 14*, Council of Europe, ETS 5 (entered into force 3 September 1953) ('*ECHR*').

[14] *Pretty v United Kingdom* (2002) 35 EHRR 1, [65] ('*Pretty*'). Before this, the court had already referred to 'the fundamental objectives of the Convention, the very essence of which is respect for human dignity and human freedom' in *SW v United Kingdom* ECHR 22 Nov 1995 [44].

[15] See further below. There are also many conventions and soft law instruments regulating sensitive areas of bio-scientific research, including genomic engineering, transplantation of body parts and reproductive technology, which promote human dignity as a value in decision-making. Deryck Beyleveld and Roger Brownsword, *Human Dignity in Bioethics and Biolaw* (Oxford University Press, 2001) 9.

[16] General Assembly, *Ad Hoc Committee on a Comprehensive and Integral International Convention on the Protection and Promotion of the Rights and Dignity of Persons with Disabilities*, 56/158 (19 December 2001).

[17] Kakoullis and Ikehara (n 2) 42–3.

Nevertheless, delegates were concerned that the shorter title omitted the important principle of dignity, and on that basis agreed instead to emphasise it in a 'Purpose' clause.[18] Article 1 CRPD begins with:

> The purpose of the present Convention is to promote, protect and ensure the full and equal enjoyment of all human rights and fundamental freedoms by all persons with disabilities, and to promote *respect for their inherent dignity*. [emphasis added]

The reference to 'respect for dignity' was inserted to acknowledge that dignity was always present in people with disabilities and could never be taken away.[19]

Dignity is referred to in several other places in the CRPD, and indeed it appears more frequently than in any other UN human rights convention,[20] leading to Degener describing the CRPD as relating 'to the concept of human dignity more than any other human rights treaty'.[21] The Preamble recognises 'the inherent dignity and worth and the equal and inalienable rights of all members of the human family'[22] that 'discrimination … is a violation of the inherent dignity and worth of the human person',[23] and also that 'the rights and dignity of persons with disabilities will make a significant contribution to redressing … profound social disadvantage … and promote … participation in the civil, political, economic, social and cultural spheres, with equal opportunities'.[24] Article 3 'General Principles' also begins with 'Respect for inherent dignity'. Once again, dignity is described as inherent, is associated with worth and equality and is also associated with autonomy. It traverses the civil–political rights to non-discrimination, autonomy,[25] and the right to be free from abuse,[26] as well as the socio-economic rights to social progress, education[27] and health.[28]

[18] Resulting in the CRPD being the only core UN human rights treaty to have a separate clause expressing purpose: ibid 43.

[19] Ibid.

[20] 'The term "dignity" appears in the Convention more often than in any other United Nations human rights convention': *United Nations Committee on the Rights of Persons with Disabilities 'General Comment No. 6 (2018) on Equality and Non-discrimination CRPD/C/GC/6* [6].

[21] Theresia Degener, 'A New Human Rights Model of Disability' in Valentina Della Fina, Rachele Cera and Giuseppe Palmisano (eds), *The United Nations Convention on the Rights of Persons with Disabilities: A Commentary* (Springer International Publishing, 2017) 41, 48.

[22] Preamble para 1.

[23] Preamble para 8.

[24] Preamble para 25.

[25] Article 3 'General Principles … (1) Respect for inherent dignity, individual autonomy including the freedom to make one's own choices, and independence of persons'.

[26] Article 16 'Freedom from violence, exploitation and abuse … (4) … Such recovery and reintegration shall take place in an environment that fosters the health, welfare, self-respect, dignity and autonomy of the person and takes into account gender- and age-specific needs.'

[27] Article 24 – 'Education … (2) … With a view to realizing this right without discrimination and on the basis of equal opportunity, States Parties shall ensure an inclusive education system at all levels and lifelong learning directed to: (a) The full development of human potential and sense of dignity and self-worth, and the strengthening of respect for human rights, fundamental freedoms and human diversity.'

[28] Article 15 'Health … (d) Require health professionals to provide care of the same quality to persons with disabilities as to others, raising awareness of the human rights, dignity, autonomy and needs of persons with disabilities.'

The commentary on disability frequently emphasises that respect for dignity has particular resonance for people with disability, with one observer writing that 'disability rights advocates … have long argued that seeing persons with disabilities as equal in dignity is a necessary precondition to recognition of disability rights',[29] and another that: 'The human dignity of disabled people is often denigrated, both in popular opinion, as well as in scholarly writing.'[30] Moreover, as described below, many legal judgements that discuss the concept of dignity centre on the rights of a person with disability,[31] while philosophical writings on dignity frequently begin with a description of a person with disability whose dignity is at risk of being violated.[32]

2.2.1 Dignity Is Inherent

All of the UN instruments referred to above describe dignity as 'inherent' to human beings and yet, at least idiomatically, we often say that a person can be 'robbed' of their dignity, implying that dignity can be earned or conferred. Many commentators endeavour to resolve the apparent contradiction between affirmations of dignity as inherent and assertions that it can be earned or conferred (or taken away) by distinguishing between two different types of dignity. Gilabert describes this as the difference between status dignity and condition dignity. Status dignity is accorded to us on the basis that we are human (i.e. inherent), whereas condition-dignity is

[29] Janet E Lord, 'Preamble' in Ilias Bantekas, Michael Ashley Stein and Dēmētrēs Anastasiou (eds), *The UN Convention on the Rights of Persons with Disabilities: A Commentary* (Oxford University Press, 2018) 1, 8.

[30] Neal writes that in cases of adults with mental incapacity, including unconscious patients, protecting dignity is 'most urgent and that reminders about human dignity can be most valuable': Mary Neal, 'Respect for Human Dignity as "Substantive Basic Norm"' (2014) 10(1) *International Journal of Law in Context* 26, 28. Also, prior to the ratification of the CRPD, the only UN human rights convention that referenced disability, recognising the 'dignity' of the 'disabled child' was the *Convention on the Rights of the Child, opened for signature 20 November, 1989, 1577 UNTS 11 (entered into force 2 September 1990)* Article 23.

[31] *Price v United Kingdom* (2002) 34 EHRR 53 ('*Price*'). See also: Angela Laycock, 'Price v UK: The Importance of Human Rights Principles in Promoting the Rights of Disabled Prisoners in the United Kingdom' in Marcia H Rioux, Lee Ann Basser Marks and Melinda Jones (eds), *Critical Perspectives on Human Rights and Disability Law* (Martinus Nijhoff Publishers, 2011) 201, 209. See also cases discussed in Charles Foster, *Human Dignity in Bioethics and Law* (Hart Publishing, 2011) 104–6; also, discussed below is a case of 'dwarf-tossing': Human Rights Committee, *Views: Communication No 854/1999, Manuel Wackenheim v France*, 75 sess, UN Doc CCPR/C/75/D/854/1999 (15 July 2002) ('*Wackenheim v France*').

[32] See, e.g., Kittay's description of her daughter Sesha leaving her shower: Eva Feder Kittay, 'Equality, Dignity and Disability' in Mary Ann Lyons and Fionnuala Waldron (eds), *Perspectives on Equality: The Second Seamus Heaney Lectures* (Liffey Press, 2005) 95, 95–6; see also description of people in an asylum being hosed down: Raimond Gaita, *A Common Humanity: Thinking about Love & Truth & Justice* (Text Pub, 2nd ed, 2000) 17; see also Lady Hale who opens with a description of Mrs Price, 'a thalidomide victim without proper arms or legs': Hale (n 2) 101; and also that stealing a bicycle from a person who is disabled is an affront on their dignity: Adam Ettinson, 'What's So Special about Human Dignity?' (2020), 48(4) *Philosophy and Public Affairs* 353, 359, 394.

only accorded to us if certain rights are fulfilled to ensure we have a dignified life (i.e. earned/conferred).[33]

This chapter looks to the text of the CRPD itself, based as it is on the affirmations in the foundational human rights conventions asserting that human dignity under the CRPD is inherent. The notion of human dignity as inherent also reflects the influence of Kant, who conceived of human dignity as innate and intrinsic to all humans.[34] Since dignity is inherent, what is important is the obligation of all of us, including the State, to respect our fellow human beings in a way that recognises and respects their and our own dignity. This reflexive, interpersonal dimension of dignity is explained later in the chapter.[35] The next sections consider whether dignity in the CRPD is a legal principle or a separate human right.

2.2.2 Dignity as a Legal Principle or a Separate Human Right?

The role of dignity in law is contested, with some lawyers opposing the notion that dignity is a legal concept at all, or that it should be developed as one in the future.[36] McCrudden points out that in some human rights and constitutional instruments human dignity is expressed as a right in itself, '…whilst in other jurisdictions it is not a right but a general principle'.[37] However, most scholars who consider the role of dignity in human rights law conceptualise it as a legal principle or value that underpins or overarches human rights and, as such, that it cannot be a separate right in itself.[38] Dupre opines that dignity has been a legal concept since it was enshrined in

[33] Pablo Gilabert, 'Human Rights, Human Dignity and Power' in Rowan Cruft, S Matthew Liao and Massimo Renzo (eds), *Philosophical Foundations of Human Rights* (Oxford University Press, 2015) 196, 200; other writers draw similar distinctions, for example between 'status dignity' and 'achievement dignity': Paul Formosa and Catriona Mackenzie, 'Nussbaum, Kant, and the Capabilities Approach to Dignity' (2014) 17(5) *Ethical Theory and Moral Practice* 875, 878; Miller distinguishes between 'inherent' dignity and 'performative' dignity: Sarah Clark Miller, 'Reconsidering Dignity Relationally' (2017) 11(2) *Ethics and Social Welfare* 108, 112; Carter makes a distinction between dignity as inherent and dignity as 'interdependent and dialogical', that is as requiring others to treat us wtih the respect that such inherent dignity deserves: Barbara Carter, 'The Case for Dignity as the Governing Principle in Adult Guardianship' (2010) 19(1) *Res Publica* 1, 4; Michael makes a distinction between 'full inherent dignity' and 'non-inherent dignity': Lucy Michael, 'Defining Dignity and Its Place in Human Rights' (2014) 20(1) *The New Bioethics* 12, 12.

[34] 'Kant played an important role historically in connecting dignity with the idea of all human beings having unconditional, intrinsic value.' Michael Rosen, *Dignity: Its History and Meaning* (Harvard University Press, 2012) 10. See further below.

[35] Section 3.3.

[36] Kakoullis and Ikehara (n 2) 53; Jeremy Waldron, *Is Dignity the Foundation of Human Rights?* (New York University School of Law, 2013) 7.

[37] McCrudden, 'Human Dignity and Judicial Interpretation of Human Rights' (n 4) 675; Rosen suggests that unless otherwise specified in legislation, dignity may be conceived of as one particular, very important right, grounding a human being's right to be respected: Rosen (n 34).

[38] Jack Donnelly (n 3) 29; Dicke argues that in the UN Declaration, dignity is 'a transcendental norm that legitimises human rights claims'; Dicke (n 1) 118; Neal categorises dignity not as a right, but as a 'substantive basic norm in a given legal system' because there is a 'necessary and

the UN Declaration in 1948 and frames it as a principle that influences the interpretation of rights, more than as a right itself.[39]

In terms of the CRPD, respect for dignity is expressed, together with autonomy and equality, as a 'General Principle' and there is no reference to dignity as a separate right. For these reasons, and because human dignity is affirmed in the UN human rights conventions as being distinct from human rights, this chapter takes as its starting point that dignity is a principle that lies behind human rights and that may be articulated through the language of rights.

Of note in the text of the CRPD is the positioning of dignity in the Preamble, the Article 1 Purpose clause, and in the General Principles. As explained in Chapter 1, the VCLT provides that a convention is to be interpreted according to its ordinary meaning in the context of its 'object and purpose'.[40] A preamble is said to 'frequently facilitate[s] the interpretation of particular provisions which are less precise than they should be, by its indication of the general idea behind them'.[41] I argue that the emphasis in these introductory provisions on dignity points to a purposive interpretation of the CRPD, and Article 12 in particular, which is informed by the principle of dignity, not just autonomy.

In terms of Article 12, I argue that dignity is the basis of our personhood, from which foundation we can claim our human rights. Both in the act of claiming our human rights and in having them fulfilled, our inherent dignity is recognised and respected. Moreover, other substantive rights in the CRPD are to be interpreted in a way that recognises and respects the dignity of the claimant.

2.2.3 What Does Dignity Mean in the CRPD?

There is no broad consensus on the meaning of dignity in philosophy or law.[42] It has indeed been described as a 'placeholder' in human rights instruments and used by drafters of the foundational instruments when there was a lack of agreement as to

foundational connection between dignity and law: Neal (n 30) 37–8; Gilabert (n 33) 200–2; Debes also considers that dignity is different from rights because rights are subsidiary to dignity: Remy Debes, 'Dignity's Gauntlet' (2009) 23(1) *Philosophical Perspectives*, 45, 57; Rosen (n 34) 10; and Foster also argues that dignity is not a right but is a legal concept that lies behind rights, and which can be 'translated into law using the language of rights': Foster, *Human Dignity in Bioethics and Law* (n 31) 17; Gearty concludes that the English courts use dignity as a 'principle', which lies behind a right, because a right can be limited or balanced, whereas recognition of dignity is non-negotiable: Conor Gearty, 'Socio-economic Rights, Basic Needs, and Human Dignity: A Perspective from the Law's Frontline' in Christopher McCrudden (ed), *Understanding Human Dignity* (Oxford University Press, 2013) 155, 160.

[39] Catherine Dupre, 'Constructing the Meaning of Human Dignity: Four Questions' in Christopher McCrudden (ed), *Understanding Human Dignity* (Oxford University Press, 2013) 113, 119–20.

[40] *Vienna Convention on the Law of Treaties* (opened for signature 18 December 1979), 1155 UNTS 331 (entered into force 27 January 1980) Article 31(1).

[41] Lord (n 29) 3, quoting ICRC, *Commentary to the Convention (IV) relative to the Protection of Civilian Persons in Time of War*, Preamble (ICRC 1958).

[42] 'The variations in the use of the term "dignity" are undeniable. We can find dignity being invoked by advocates of flatly opposed moral positions.' Rosen (n 34) 5; see also Debes (n 38) 46, 61.

what rights or values should prevail.[43] However, there has started to develop a body of philosophical and legal literature and jurisprudence that considers the meaning and role of human dignity, influenced to different extents by Kantian thought.

While some theorists and practitioners equate dignity with autonomy, I argue, along with others, for a wider and more complex definition of dignity. This chapter draws on the work of philosophers, academic lawyers and judges to formulate a meaning of dignity that makes sense in the context of the CRPD, interpreted through the principle of indivisibility. It argues that the meaning of dignity in the CRPD comprises these five dimensions:

- Dignity as equal worth or value.
- Dignity as recognising the autonomy of those who are capable of autonomy.
- Dignity as recognising the interdependent, interpersonal and social nature of being human.
- Dignity as recognising the embodied nature of personhood.
- Dignity as underpinning and affirming the indivisibility of human rights.

The remainder of this chapter explores this concept of 'five-dimensional dignity'.

2.2.4 Summary and Conclusions

References to dignity are pervasive in human rights and humanitarian instruments, beginning with the UN Declaration and proliferating within the UN and regionally. The CRPD mentions dignity more times than any other UN human rights convention. It is referenced several times in its Preamble; its Purpose clause includes the promotion of respect for dignity; and respect for inherent dignity is affirmed in the first of its General Principles. In the substantive articles of the CRPD, recognition of dignity is linked with fulfilling civil-political rights (including preventing abuse) and fulfilling socio-economic rights such as the rights to education and health. This foregrounding of dignity in the CRPD reflects a broader acknowledgement in the commentary and jurisprudence that recognition of the dignity of persons with disability is often fragile and thus of particular significance. In the instruments referred to above, dignity is said to be inherent and associated with equality, worth and being human, and is also sometimes linked with autonomy.

This chapter takes as its starting point the text of the CRPD (based as it is on the wording in the foundational UN human rights instruments) to conclude that dignity is inherent in all human beings and, as such, must be recognised and respected by others through the fulfilment of their and our human rights. Further, dignity in the CRPD serves as a separate legal principle to be used to interpret and apply the human rights in the convention, including Article 12. Article 12 must be interpreted and applied in a way that recognises and respects the dignity of people with disability,

[43] McCrudden, 'Human Dignity and Judicial Interpretation of Human Rights' (n 4) 676–8; Foster, *Human Dignity in Bioethics and Law* (n 31) 93; Michael (n 33).

and the foregrounding of dignity in the text of the CRPD places a demand on us to give substantive meaning to the term. The meaning of dignity is far from agreed, but the human rights conventions themselves, including the CRPD, state that human dignity refers to the equal worth or value of all of us as humans, and many philosophers and lawyers make clear connections between dignity and autonomy.

The following sections consider the five proposed dimensions of dignity that underpin the CRPD and Article 12.

3 FIVE PROPOSED DIMENSIONS OF DIGNITY

3.1 *Dignity as Equal Worth or Value*

The first dimension of dignity proposed as underpinning the CRPD is its recognition of equal worth or value. Already noted above is the association of dignity with the concept of human worth, or equal human worth, in texts of the foundational human rights instruments, as well as in the CRPD. Dignity was originally a term of hierarchical exclusion applying only to a small portion of the privileged elite,[44] with Cicero, for instance, associating dignity with the nobility.[45] Feldman, writing in 1999, cites the Oxford English Dictionary's definition as 'The quality of being worthy or honourable; worthiness, worth, nobleness, excellence', implying retention, to an extent, of that elitist concept of dignity as an attribute of those with high status.[46] Many writers also describe how the concept of human dignity as worth was incorporated into Judeo-Christian theology to underline 'a certain exceptional position of man in God's creation',[47] signalling the universal worth or value of man as having been created in God's image.[48]

This interpretation of dignity through a Judeo-Christian lens signalled its transformation from being an attribute of the elite, to an attribute of *all* humans, so that all humans had worth or value.[49] In the eighteenth century, Kant further democratised dignity and also secularised it, with his theory that dignity is 'the idea of all human beings having unconditional, intrinsic value'.[50] However, it is important to note that in Kant's writings, attributing value or worth to a person does not serve

[44] Jack Donnelly (n 3) 2, 126–8; John F Kilner, 'Human Dignity' in Stephen G Post (ed), *Encyclopedia of Bioethics* (Macmillan Reference USA, 3rd ed, 2004) vol 2, 1193.

[45] Miller (n 33) 109; Rosen (n 34) 11.

[46] David Feldman, 'Human Dignity as a Legal Value' (Pt 1) [1999] *Public Law* 682, 686.

[47] Dicke (n 1) 113; Debes (n 38) 45; Suzy Killmister, 'Disability, Respect and Cognitive Disability' in David T Wasserman and Adam Steven Cureton (eds), *The Oxford Handbook of Philosophy and Disability* (2018) 4; Sarah Clark Miller, 'Reconsidering Dignity Relationally' (2017) 11(2) *Ethics and Social Welfare* 108.33) 109.

[48] Killmister, 'Disability, Respect and Cognitive Disability' (n 47) 4.

[49] Ibid.

[50] Rosen (n 34) 10.

to objectify or commodify them. On the contrary, for Kant 'everything has either a price or a dignity. What has a price can be replaced by something else as its equivalent; what, on the other hand, is raised above all price and therefore admits of no equivalent has a dignity'.[51] While dignity is equated with worth, the value of human dignity is immeasurable because humans and their dignity cannot be reduced to a price or commodified.

The idea of dignity as indicating human worth has been widely accepted in the philosophical and human rights literature[52] and jurisprudence.[53] In *Airedale NHS Trust v Bland* ('Bland'), the House of Lords ultimately determined that it was lawful to end life support for a young man in a persistent vegetative state ('PVS'). The judgement of Hoffman LJ in the lower Court of Appeal has been widely noted for its consideration of dignity, describing it as a value that leads to 'our belief that … it is wrong for someone to be humiliated or treated without respect for his value as a person'.[54] Quinn and Degener write:

> Recognition of the value of human dignity serves as a powerful reminder that people with disabilities have a stake in and a claim on society that must be honoured quite apart from any considerations of social or economic utility.[55]

That is, human rights are often erroneously denied to people with disability because they don't always possess capacities or functions otherwise valued by society, but their value resides in their inherent human dignity.

Consistent with the notion of dignity as signifying the incommensurable value of all humans is Kant's prescription that human beings must always be treated as ends and not merely as means – that is, valued for themselves and not used merely as instruments for the ends of others.[56] This means that a person cannot be reduced

[51] Ibid 20–1. Quoting Immanuel Kant, 'Groundwork to a Metaphysics of Morals' in Paul Menzer (ed), *Critique of Pure Reason* (Academy of Sciences, 1785) vol 4, 387, 436. See also: 'for Kant all things have a price, but man has an inestimable value' in: Paolo Becchi, 'Human Dignity in Europe: Introduction' in Paolo Becchi and Klaus Mathis (eds), *Handbook of Human Dignity in Europe* (Springer International Publishing, 2019) 1, 5.

[52] 'It is a synonym for human worth, the inherent excellence of the human person as distinguished from any other living creature.' In Dicke (n 1) 113; Charles R Beitz, 'Human Dignity in the Theory of Human Rights: Nothing but a Phrase?' (2013) 41(3) *Philosophy and Public Affairs* 259, 275; McCrudden, 'Human Dignity and Judicial Interpretation of Human Rights' (n 4) 679; 'The German word for dignity is Würde, a word that is closely related etymologically to Wert, the term for "worth" or "value"': Rosen (n 34) 19.

[53] Foster agrees that dignity in human rights means human worth and also summarises Hoffman LJ's words in *Airedale NHS Trust v Bland* [1993] AC 789, 826 ('*Bland*') as 'it is not just the sentient or self-conscious who have dignity interests protected by law' Foster, *Human Dignity in Bioethics and Law* (n 31) 94, 102.

[54] *Bland* 826 per Hoffmann LJ; cited in Foster, *Human Dignity in Bioethics and Law* (n 31) 100.

[55] Quinn and Degener (n 5) 14.

[56] See Parfit Chapter 9 – 'Merely as a Means' for a nuanced critique and analysis of this concept: Derek Parfit, *On What Matters: Volume One* (Oxford University Press, 2011) 212–32; see also Nussbaum's concept of human dignity as a foundation for personhood (see below) places this Kantian maxim at its core: Martha C Nussbaum, *Frontiers of Justice Disability, Nationality,*

to a mere object[57] and, in particular, that exploiting or abusing people with disability for the ends of others fails to recognise or respect their human dignity and their personhood. McCrudden proposes that a 'basic minimum content' of human dignity includes respect for intrinsic worth together with the recognition that the State exists for 'the sake of the individual human being, and not vice versa'.[58] He thereby implies that if the State were to treat individuals as merely instrumental to its goals, this would be a violation of human dignity. In Article 12 terms, if an adult's supporter were to unduly influence a decision merely for the supporter's own benefit, or if a substitute were to make a decision merely for the substitute's own gain, this would be treating the adult merely as a means, rather than valuing the adult in his or her own right.

3.2 *Dignity as Recognising the Autonomy of Those Who Are Capable of Autonomy*

One meaning frequently attributed to dignity in philosophy and law, and also deriving from Kant, is that dignity equates with the concept of autonomy.[59] The second dimension of dignity proposed as underpinning the CRPD is that it recognises the autonomy of those who are capable of autonomy.

3.2.1 Dignity as Meaning Only Autonomy

As one commentator summarised Kant: 'Simply put, human beings have dignity because autonomous reason rather than impulses or the pursuit of personal or social benefit governs their actions.'[60] As suggested in the quote, many writers and

Species Membership (Harvard University Press, 2009) 50. See also: 'Insofar as we exist merely in the realm of nature, we are not ends in ourselves and do not have a dignity; things in that realm simply have a price … Insofar as we enter the realm of ends, thus far, and thus far alone, we have dignity and transcend price.' Martha C Nussbaum, 'Beyond the Social Contract: Toward Global Justice', *The Tanner Lectures on Human Values* (2003) 426.

[57] See, e.g., Becchi, who writes about: 'The modern idea of human dignity, which essentially prohibits us from reducing the person to a thing': Becchi (n 51) 16.

[58] McCrudden, 'Human Dignity and Judicial Interpretation of Human Rights' (n 4) 679.

[59] Ibid 685; also Neal (n 30) 28.

[60] Kilner (n 44); see also 'Kant is generally taken to be the locus situ of the intimate connection between personhood, dignity and autonomy' in Licia Carlson and Eva Feder Kittay, 'Introduction: Rethinking Philosophical Presumptions in the Light of Cognitive Disability' (2009) 40(3–4) *Metaphilosophy* 307; 'The right to make one's own decisions about many aspects of one's fate, and to contribute to decisions made by others which affect one's life, can be seen as a major contribution to an individual's dignity, linking the notion to a Kantian perspective on morality': Feldman (Pt 1) (n 46) 685; 'In liberal theory, one's ability to act for reasons – one's "rational agency" – is regarded as valuable … It gives one a special worth or status, often called "dignity", which renders one inviolable' in Cynthia A Stark, 'Respecting Human Dignity: Contract versus Capabilities' in Eva Feder Kittay and Licia Carlson (eds), *Cognitive Disability and Its Challenge to Moral Philosophy* (2010) 111, 111; 'The Dignity Model and other dignity research also identifies autonomy and control as associated with dignity', in McCrudden, 'Human Dignity and Judicial Interpretation of Human Rights' (n 4) 685, 688.

philosophers view Kant's conception of dignity as being closely linked with the ability for rational thought, self-legislation, self-determination and personal choice, thereby excluding adults with cognitive disability.[61] McCrudden describes how in bioethics – for example, in the debate on women's right to abortion – dignity is often equated with the right to choose[62] and more widely with the right of informed consent (or refusal) of medical treatment.[63]

In arguments for limitations to, or abolition of, decision-making by substitutes, frequent reliance is placed on a prevailing right of people with cognitive disability to enjoy the 'dignity of risk'. The concept of the 'dignity of risk' was first promulgated in the 1970s by practitioners in the field of intellectual disability.[64] They recognised that institutionalisation, in denying self-determination even in daily choices, may have kept adults safe but undermined self-confidence and inhibited self-growth. Nay writes in the context of aged care: 'I would argue that risk management and "protective behaviours" are usually focused on minimising overt physical harm and often on protecting the back of the health care system'.[65] Acknowledging and promoting the dignity of risk has since become foundational to mental health treatment which promotes self-determination as a pathway to recovery.[66] The preservation

[61] Killmister, 'Disability, Respect and Cognitive Disability' (n 47) 1; Elif Celik, 'The Role of CRPD in Rethinking the Subject of Human Rights' (2017) 21(7) *The International Journal of Human Rights* 933, 940. The issue of 'individuality' or being treated as an individual also recurs frequently in dignity research; hence the concept of patient-centred care: Linda Barclay, 'In Sickness and in Dignity: A Philosophical Account of the Meaning of Dignity in Health Care' (2016) 61 *International Journal of Nursing Studies* 136, 140.

[62] McCrudden, 'Human Dignity and Judicial Interpretation of Human Rights' (n 4) 685, 688. For the US Supreme Court in relation to the right to abortion: 'The authority to make such traumatic and yet empowering decisions is an element of basic human dignity.' *Planned Parenthood of Southeastern Pa. v Casey*, 505 US 833 [916] (1992).

[63] 'Dignity has, for instance, been used to support the justification for establishing a doctrine of informed consent.' Daniel Bedford, 'Human Dignity in Great Britain and Northern Ireland' in Paolo Becchi and Klaus Mathis (eds), *Handbook of Human Dignity in Europe* (Springer Nature Switzerland, 2019) 319, 348. 'From one perspective, human dignity clearly demands protection of individual autonomy. For instance, many jurisdictions ground the autonomy of patients to make free and informed choices about their medical care in human dignity.' Paolo G Carozza, 'Human Rights, Human Dignity, and Human Experience' in Christopher McCrudden (ed), *Understanding Human Dignity* (Oxford University Press, 2013) 615, 618. 'This relevance for human dignity is associated – as is clear in particular from Article 3, in which free and informed consent becomes the fulcrum around which the "government of the body" should turn.' Becchi (n 51) 19.

[64] Robert Perske, 'The Dignity of Risk' in Wolf Wolfnsberger et al, *Principles of Normalization in Human Services* (National Institute of Mental Retardation, 1972) 194.

[65] Rhonda Nay, 'The Dignity of Risk' (2002) 9 *The Australian Nursing Journal* 33, 33.

[66] Craig Parsons, 'The Dignity of Risk: Challenges in Moving On' (2008) 15(9) *The Australian Nursing Journal* 28; 'The terms Dignity of risk (DofR) and Therapeutic Risk (TR) most commonly appear in four discourses: disability, mental health, ageing and dementia. The terms are largely interchangeable': Pauline Marsh and Lisa Kelly, 'Dignity of Risk in the Community: A Review of and Reflections on the Literature' (2018) 20 (5–6) *Health, Risk & Society* 297, 299.

of a person's 'dignity of risk' in this context equates with the preservation of their decision-making autonomy.[67]

Aligning with the view of dignity as equating with autonomy, the philosopher Ruth Macklin in 2002 concluded that dignity was a 'useless concept' because it 'means no more than respect for persons or their autonomy'.[68] However, since then a significant body of literature on the meaning of dignity, including considerations of how it functions as a wider concept than autonomy, has developed in philosophy and law.

3.2.2 Dignity as Achieving Capabilities: No More than Autonomy?

Nussbaum is one philosopher who has endeavoured to develop a concept of human dignity to expressly include adults with cognitive disability within liberal conceptions of personhood. However, it has been criticised for taking the concept of dignity no further than autonomy and ultimately failing to include the severely and profoundly cognitively impaired within moral personhood.

Nussbaum has developed a theory of justice (her capabilities approach) that proposes dignity can and should function as the marker of human personhood if divorced from the notion of Kantian rationality and autonomy. The capabilities approach defines ten central capabilities that must be achieved by citizens at threshold levels for justice to be met and human dignity recognised. She describes the ten capabilities as collectively representing a minimum threshold for human flourishing. The capabilities are as follows: 1. 'Life', 2. 'Bodily health', 3. 'Bodily integrity', 4. 'Senses, imagination and thought', 5. 'Emotions', 6. 'Practical reason', 7. 'Affiliation', 8. 'Other species' (ability to have concern for animals and plants), 9. 'Play', and 10. 'Control over one's environment'.[69] She argues intuitively that without any one of these capabilities, a life worthy of human dignity cannot be lived.[70]

Nussbaum makes a distinction between capabilities and functioning. Whilst in a just society all individuals must achieve the minimum threshold for the capabilities, the liberal emphasis on individual choice is retained in that a person can choose whether or not to exercise the functioning related to the nominated capabilities. For example, a person must live in a society that allows them the capability for health and wellbeing, but once they reach the relevant capability threshold, if they choose an unhealthy lifestyle, then the State should not intervene by imposing or mandating one.[71] Nussbaum's one exception to this tenet of free choice is that 'government … should not give people an option to be treated with respect and

[67] Suzanne Doyle and Eilionóir Flynn, 'Ireland's Ratification of the UN Convention on the Rights of Persons with Disabilities: Challenges and Opportunities' (2013) 41(3) *British Journal of Learning Disabilities* 171, 174; 'Removing the right to take risks removes autonomy and control from older people': Nay (n 65) 33.

[68] Rosen (n 34) 5; Miller (n 33) 110; Becchi (n 51) 26.

[69] Nussbaum, *Frontiers of Justice* (n 56) 76–7; Martha Nussbaum, *Creating Capabilities: The Human Development Approach* (Harvard University Press, 2011) 33–4.

[70] Nussbaum, *Frontiers of Justice* (n 56) 78.

[71] Nussbaum, *Creating Capabilities* (n 69) 26.

non-humiliation'.[72] In other words, the State should not allow us to choose to be treated by others in a way that is humiliating or degrading – that belies our human dignity.

Despite Nussbaum's express aim of correcting the ableist prejudices of Rawlsian liberalism, the capabilities approach has been widely criticised for its emphasis on reason as a capability,[73] and for espousing a concept of human dignity that is, in effect, equivalent to liberal conceptions of autonomy.[74] Nussbaum acknowledges that some adults with cognitive disability will require the assistance of a 'surrogate' decision-maker or guardian to achieve some of the capabilities.[75] The appointment of a guardian would not amount to a denial of personhood, because it would help the adult achieve the capabilities and have their dignity recognised.

More problematic, though, is Nussbaum's conclusion that some adults with a severe and profound cognitive disability will be excluded from personhood. She excludes persons in a PVS on the basis that they are 'former' human beings.[76] She also concludes that some adults with a severe and profound cognitive disability may never be capable of reaching all of the capability thresholds, even with the assistance of a surrogate or guardian.[77] The capabilities approach has been widely criticised for establishing norms that are beyond the reach of some people, thereby denying them dignity and personhood.[78] Foster reflects the view of many critics when he writes of Nussbaum that 'For her, dignity is autonomy.'[79] Nussbaum's conception of dignity as underpinning personhood ultimately fails to include the hard cases because of its privileging of autonomy, rationality and the right to make choices.[80]

[72] Ibid.

[73] Stark (n 60) 119–20, 12; Michael Bach and Lana Kerzner, *A New Paradigm for Protecting Autonomy and the Right to Legal Capacity: Advancing Substantive Equality for Persons with Disabilities through Law, Policy and Practice* (Law Commission of Ontario, October 2010) 69; David Bilchitz, 'Dignity, Fundamental Rights and Legal Capacity: Moving beyond the Paradigm Set by the General Comment on Article 12 of the Convention on the Rights of Persons with Disabilities' (2016) 32(3) *South African Journal on Human Rights* 410, 412; Caroline Harnacke, 'Capability and Disability: The CRPD from the Perspective of the Capabilities Approach' in Joel Andersen and Jos Philips (eds), *Disability and Human Rights: Legal, Ethical, and Conceptual Implications of the Convention on the Rights of Persons with Disabilities* (Netherlands Institute of Human Rights, 2012) 167, 177–80.

[74] Leslie P Francis and Anita Silvers, 'Thinking about the Good: Reconfiguring Liberal Metaphysics (or Not) for People with Cognitive Disabilties' in Eva Feder Kittay and Licia Carlson (eds), *Cognitive Disability and the Challenge to Moral Philosophy* (2010) 237, 246; Anna Arstein-Kerslake, *Restoring Voice to People with Cognitive Disabilities: Realizing the Right to Equal Recognition before the Law* (Cambridge University Press, 2017) 45.

[75] Nussbaum, *Creating Capabilities* (n 69) 24.

[76] Nussbaum, *Frontiers of Justice* (n 56) 181.

[77] As an example of the latter, Nussbaum refers to Kittay's daughter Sesha, ibid 192–4.

[78] Eva Feder Kittay, 'At the Margins of Moral Personhood' (2005) 116(1) *Ethics* 100, 108–10.

[79] Foster, *Human Dignity in Bioethics and Law* (n 31) 65.

[80] See also Pinheiro and Simplican, who see Nussbaum's theory as limited at its foundations in seeking to 'correct' Rawls's theory of justice rather than embrace an understanding that the exclusion of people with cognitive disability is foundational to both Kant and Rawls: Lucas

3.2.3 Summary and Conclusions on Dignity and Autonomy

In philosophy and law, dignity is often equated with autonomy, as in bioethics, which emphasises the nexus between dignity and informed consent. The elision of dignity with autonomy is evident in the disability literature when it advocates promoting the 'dignity of risk' for people with cognitive disability, to allow them to make their own autonomous decisions in all cases. However, such a narrow concept of dignity excludes from personhood people with cognitive disability who are non-autonomous. Nussbaum attempts to reconfigure the social contract to include adults with cognitive disability but only succeeds in lowering the entry bar by retaining residual reliance on rationality in her concept of human dignity.

In the previous chapter, I argued that endeavours to extend autonomy to adults with cognitive disability ultimately fail because they continue to privilege rationality and non-interference. Nevertheless, that chapter also recognised the importance of autonomy as a human rights value, and the philosophical and legal literature demonstrates strong links between autonomy and dignity. For these reasons, five-dimensional dignity demands recognition and respect for the autonomy of those who are capable of autonomy. However, there is a growing body of literature and jurisprudence that proposes a formulation of human dignity that, while acknowledging the importance of autonomy, is broader and more inclusive.

3.3 *Dignity as Recognising the Interdependent, Interpersonal and Social Nature of Being Human*

The third proposed dimension of dignity in the CRPD is that it recognises the interdependent, interpersonal and social nature of being human. The UN Charter and human rights conventions refer not just to dignity but to *human* dignity. Dignity is an attribute that is associated with humans but also with non-human animals, so when defining *human* dignity, philosophers have been led to consider what it actually means to be human.[81]

The next section considers philosophical formulations of human dignity that reject biological definitions of the human and propose alternatives. It considers first those definitions of human dignity that identify capacities other than rationality as the foundation for personhood. However, it rejects these in favour of definitions that recognise the reflexive nature of dignity, the interdependent and interpersonal

G Pinheiro, 'The Ableist Contract: Intellectual Disability and the Limits of Justice in Kant's Political Thought' in Barbara Arneil and Nancy J Hirschmann (eds), *Disability and Political Theory* (Cambridge University Press, 2016) 43, 70–1; Stacy Clifford Simplican, 'Disavowals of Disability in Rawls' Theory of Justice and His Critics' in Barbara Arneil and Nancy J Hirschmann (eds), *Disability and Political Theory* (Cambridge University Press, 2016) 79, 91.

[81] See, e.g., 'Cicero considers the dignity that human beings have solely because they are human, not animals.' And 'So, right from the outset, dignity has been transposed and extended into a way of saying something about human beings as such.' Rosen (n 34) 12.

nature of being human and the social meanings we attribute to it. Following this is a description of legal expressions of this philosophical notion of human dignity as interdependent, interpersonal and imbued with social meaning, as revealed in the jurisprudence and legal commentary on dignity.

3.3.1 Philosophical Approaches to Dignity as Human

If human dignity and moral personhood were said to attach to humans merely because of their different biological makeup from animals, then there is a widely held view that this would amount to 'speciesism'. Speciesism describes a conception of moral personhood that is linked entirely to biology and therefore opens a space for implying more broadly that certain biological characteristics – for example, race, sex, ability or disability – are either superior or inferior to others.[82]

3.3.2 Human Dignity Based on Sentience or Other Psychological Capacities

To avoid speciesism, some philosophers such as Singer have endeavoured to formulate conceptions of personhood based on the capacity for sentience – that is, the capacity for sensation or feeling or other psychological capacities.[83] Such arguments, however, inevitably lead to conclusions that some animals may have equal or greater sentience or psychological capacity than some people with a severe and profound cognitive disability.[84] Disability advocates criticise these arguments both because they are insensitive to the history of marginalisation and 'dehumanisation' of people with disability[85] and because comparisons between the psychology of humans and animals are to a large extent inapt or unintelligible.[86] A definition of personhood based on the capacity for sentience is, therefore, both over-inclusive and under-inclusive.[87] It is over-inclusive because it encompasses some animals, and it is under-inclusive by excluding some people with a severe and profound cognitive

[82] See, e.g., Cora Diamond, 'Eating Meat and Eating People' in Cass R Sunstein and Martha C Nussbaum (eds), *Animal Rights: Current Debates and New Directions* (Oxford Scholarship Online 2012) DOI: 10.1093/acprof:oso/9780195305104.001.0001 93–4; Becchi (n 51) 21.

[83] McMahan proposes similarly that claims to moral personhood may be based on whether an animal – human or non-human – has the requisite higher levels of psychological capacity: Jeff McMahan, 'Radical Cognitive Limitation' in Kimberley Brownlee and Adam Steven Cureton (eds), *Disability and Disadvantage* (Oxford University Press, 2018) 240; Elizabeth Anderson, 'Animal Rights and the Values of Nonhuman Life' in Cass R Sunstein and Martha C Nussbaum (eds), *Animal Rights: Current Debates and New Directions* (Oxford University Press, 2004) 277, 277; Alice Crary, 'Cognitive Disability and Moral Status' in David T Wasserman and Adam Steven Cureton (eds), *The Oxford Handbook of Philosophy and Disability* (Oxford University Press, 2018) 6.

[84] McMahan (n 83).

[85] Crary (n 83) 7.

[86] Kittay, 'At the Margins of Moral Personhood' (n 78) 117.

[87] David T Wasserman et al, 'Cognitive Disability and Moral Status' in Edward N Zalta (ed), *The Stanford Encyclopedia of Philosophy* (Fall 2017 Edition), <https://plato.stanford.edu/archives/fall2017/entries/cognitive-disability/> [4.1].

disability. This leads to the conclusion that any concept of human dignity or personhood based on the possession of identified capacities – whether the capacity for rationality, autonomy or sentience – must always fail. Instead, it has been argued that human dignity is imbued with meaning through the relational, interpersonal and social nature of being human.

3.3.3 Human Dignity as Reflexive, Interpersonal or Interrelational

Debes describes how several philosophers have argued for a concept of human dignity that is constituted by an interpersonal or inter-human component.[88] This does *not* mean that dignity is conferred on us by others. It does mean, however, that dignity as an essentially human attribute is constituted by our interpersonal relationships, communications and affinities with other humans, including our emotional and affective gestures or responses (or, in the case of the patient in a PVS, non-responses). Felder proposes a similar, inclusive concept of the human as specifically underpinning the CRPD when she writes that 'human beings alone' have a '"we" capability', and that 'our normative expectations are met by beings "we count on", and whom we consider in a fundamental sense to "belong to us"'.[89]

Neal draws out this interpersonal component of dignity when she proposes that, when we violate another's dignity, we reflexively may compromise our own. Conversely, we may impinge on the autonomy of someone else without compromising our own.[90] Unlike autonomy, dignity's core is not found in rationality, nor in the ideal of the bounded, atomistic individual of Rawls's thinking. Nor is dignity based on a concept of contractual reciprocity between individuals. Dignity implies the existence of a moral community between humans,[91] and it is because of this that dignity underpins all human rights and demands that people be treated as subjects, not objects, as ends and not merely as means.[92] Mosissa argues similarly that dignity is a 'relational normative principle underlying our complex social relations'; and that '…as opposed to autonomy and equality, the principle of respect for human dignity does not in any way imply the idea of atomised individualism…'.[93] However, it could be argued that this type of reasoning still leaves it open to argue that our interactions

[88] Debes (n 42) 48; see also: 'It is also helpful in this context to conceive of human dignity as a relational value. According to this notion we are interconnected beings.' Sandra Liebenberg, 'The Value of Human Dignity in Interpreting Socio-Economic Rights' (2005) 21(1) *South African Journal on Human Rights* 1, 11.

[89] Franziska Felder, 'What Does the CRPD Tell Us about Being Human?' in Franziska Felder, Laura Davy and Rosemary Kayess (eds), *Disability Law and Human Rights: Theory and Policy* (Palgrave, 2022) 47, 58–9, citing Hans Bernhard Schmid, '"Person" – Nostrologische Notizen' in Frank Kannetzky and Henning Tegtmeyer (eds) *Personalität* (Universitätsverlag, 2007).

[90] Neal (n 30) 29.

[91] Debes (n 42) 58.

[92] Ibid 54.

[93] Getahun A Mosissa, *A Re-examination of Economic, Social and Cultural Rights in a Political Society in the Light of the Principle of Human Dignity* (Intersentia, 2020) 89, 121.

with animals are also based on a type of inter-relationality, without identifying what marks us as human.

Anderson avoids accusations of speciesism by proposing that personhood is grounded in dignity as constituted and generated by the social meanings we attribute to being human. Central to her theory of personhood is the fact that adults with a severe and profound cognitive disability will not have the capacity for autonomy but are still recognised as persons and have moral considerability. Human dignity inheres in them and in all of us, through our bodies, through the material experiences of our everyday lives, and, importantly, through the social meanings attributed to and generated by our existence and actions.[94] By way of illustration, Anderson describes how our interests in respecting a woman with advanced Alzheimer's disease who can no longer care for herself cannot be attributed merely to an instrumental concern for her health and hygiene. Respect for her as a person 'make[s] sense only within a complex system of social relations and meanings' around the notion of being human.[95]

Killmister argues in similar terms as Anderson when she conceives of humans not just as a biological category of the 'natural kind' but as a category of the 'social kind'. Like Anderson, she places great weight on 'social meanings' generated by us all around the concept of being human, writing that 'dignity refers to the worth of being human, where that worth is an upshot of the meaning we've given to the social kind human'.[96]

A potential critique of a conception of human dignity as being generated or constituted by social meaning, may be based on observaions of how easy it has been for society to position certain individuals as 'sub-human' or 'non-human'. Indeed, we would all agree with the analysis that placing people with disabilities and Jewish people on cattle trucks to be industrially exterminated, 'dehumanises' them. But such a statement only makes sense within a framework of meaning that acknowledges implicitly that people with disabilities and Jews *are* human. To treat someone 'like a dog' means that we have 'de-humanised' them but saying that we treat a cat 'like a dog' or a cow 'like a dog', would mean something very different. In short, we operate within systems of social meaning that implicitly define and acknowledge what is human.

Some proponents of an ethic of care as the basis for personhood also connect care theory with dignity. Unfortunately, there is not space here for a description of the

[94] Anderson (n 83) 282–4.

[95] Ibid.

[96] Killmister, 'Disability, Respect and Cognitive Disability' (n,47) 8. Note that elsewhere Killmister writes that human dignity is 'conferred', but I argue that her concept of the human as 'social kind' is not inconsistent with the concept of human dignity as inherent. Suzy Killmister, Dignity: Personal, Social, Human' (2017) 174(8) *Philosophical Studies* 2063. For a social or relational concept of human, see also Diamond who writes that the difference between humans and animals is that: 'The moral expectations of other human beings demand something of me as other than an animal': Diamond (n 82) 106.

nuances and complexities of care theory.[97] However, of significance is that an ethic of care has developed as an alternative basis for personhood to Kantian and Rawlsian autonomy, focusing on context and relationships as constitutive of personhood.[98] Kittay searches for a concept of human dignity grounded in an ethic of care that will include her daughter Sesha who has a profound and severe cognitive disability. She concludes, not dissimilarly to Anderson and Killmister, that 'Philosophers have been on the right path when they have located human dignity in the possibility of a moral life lived out amongst fellow human beings.'[99] Human dignity is to be found in our capacity to care and in being cared for by others. In care ethics, relationships are not instrumental but constitutive of personhood and the inherent dignity of the carer and the cared for.[100]

3.3.4 Jurisprudence and Legal Commentary: The Dignity Interests of the Many; Article 8 ECHR and the Right to Respect for Private and Family Life; 'Public Order' in *Wackenheim v France*

The subsections above have described a philosophical conception of dignity as respecting autonomy but as nevertheless grounded in the interdependent and interpersonal nature of being human and the social meanings attached to it. I argue that this conception is also suggested in some of the key jurisprudence and legal commentary relating to dignity.

Lady Hale writes that 'Although respect for individual autonomy is an essential part of respect for human dignity, we are also required to respect the human dignity of those who are unable to make an autonomous choice.'[101] Much of the UK jurisprudence on autonomy and dignity arises from an examination of Articles 3 and 8 ECHR. Article 3 contains the prohibition against torture and inhuman or degrading treatment, and the Article 3 formulation of dignity is discussed later in this chapter.[102] The jurisprudence around Article 8, the 'Right to respect for private and family life', is of interest in its consideration of the role of dignity and its interface with autonomy. Article 8 ECHR provides that:

(1) Everyone has the right to respect for his private and family life, his home and his correspondence.
(2) There shall be no interference by a public authority with the exercise of this right except such as is in accordance with the law and is necessary in

[97] See Carol Gilligan, *In a Different Voice: Psychological Theory and Women's Development* (Harvard University Press, 1993); Jonathan Herring, *Caring and the Law* (Hart Publishing, 2013); Virgina Held, *The Ethics of Care: Personal, Political, Global* (Oxford University Press, 2006).

[98] Jennifer Nedelsky, *Law's Relations: A Relational Theory of Self, Autonomy, and the Law* (Oxford University Press, 2012) 87.

[99] Kittay, 'Equality, Dignity and Disability' (n 32) 111.

[100] Miller similarly proposes an ethic of care can be founded in a concept of dignity as relationality: Miller (n 33) 113–14.

[101] Hale (n 2) 106; Neal (n 30) 28–9.

[102] See Section 3.5.

> a democratic society in the interests of national security, public safety or the economic well-being of the country, for the prevention of disorder or crime, for the protection of health or morals, or for the protection of the rights and freedoms of others.

Article 8(1) establishes a right to respect for private and family life, while Article 8(2) sets out circumstances where paragraph (1) rights may be limited.

In *Pretty*, Ms Pretty had argued for the legality of assisted suicide, submitting that, as part of her Article 8 right to protection of her private life, she had the right to choose when and how her life was to end in accordance with her own autonomous wishes. The European Court of Human Rights confirmed that Article 8 equates with a right to autonomy,[103] and this interpretation of Article 8 has since been widely acknowledged and accepted in both the jurisprudence and commentary.[104] Nevertheless, the Court acknowledged that, while Ms Pretty's Article 8(1) autonomy rights had been engaged,[105] she failed in her argument because the Court held that Article 8(2) allowed for limitations on her autonomous wishes. The Court explained that Article 8(2) allows for restrictions on autonomy in cases of 'pressing social need', when 'necessary in a democratic society', and for the protection of the rights of others. In this case, these social factors meant that state restrictions on the active facilitation of suicide were not unjustifiable.[106]

Foster summarises how the relevant principles derived from *Pretty* are that both autonomy and dignity are aspects of the 'private life' guaranteed respect by Article 8.[107] He further concludes from the reasoning in this and other Article 8 cases that:

> whatever dignity is, it is a deeper concept than autonomy, and so has a right to priority. That autonomy rights, crucially important though they are, are rights that are rooted in and find their only conceivable justification in dignity: autonomy is a manifestation of dignity.[108]

According to Foster, autonomy is an important value and upholding autonomy may be necessary to respect dignity in many cases. However, in complex and difficult cases, such as *Pretty*, autonomy may conflict with other important values including

[103] 'Although no previous case has established as such any right to self-determination as being contained in Article 8 of the Convention, the Court considers that the notion of personal autonomy is an important principle underlying the interpretation of its guarantees.' *Pretty* 33.

[104] 'It is important to note that personal autonomy and dignity are both aspects of the "private life", respect for which is guaranteed by article 8 of the Convention.' *R (Burke) v General Medical Council (Official Solicitor intervening)* [2005] QB 424, 445 ('*Burke*'); Dupre (n 39) 114; Jonathan Herring, 'Elder Abuse: A Human Rights Agenda for the Future' in Israel Doron and Ann M Soden (eds), *Beyond Elder Law* (Springer-Verlag, 2012) 175, 182.

[105] *Pretty* [67].

[106] Ibid [78].

[107] Foster, *Human Dignity in Bioethics and Law* (n 31) 110.

[108] Ibid 101.

'justice', and in these instances, the ethically justifiable decision is the one that upholds dignity in the wider sense.[109]

Foster endorses the reasoning of Munby J in a long line of Article 8 cases,[110] culminating in His Honour's judgement at first instance in *R (Burke) v General Medical Council* ('*Burke*'). One of the cases discussed by Munby J is *R (A, B, X and Y) v East Sussex County Council (No 2)* ('*East Sussex*'), in which the applicants alleged the unlawfulness of council policies mandating mechanical lifting by disability workers of adults under their care. The applicants claimed that mechanical lifting amounted to violations of Articles 3 and 8 ECHR and sought instead that lifting be provided manually. Munby J found that Article 8 was engaged: first, through Article 8(1) by asserting the dignity interests of the applicants, including their rights to autonomy and to participate in the community, and second, through Article 8(2) by asserting and protecting the dignity rights of the carers.[111] Munby J ultimately decided that the policies should be rewritten to acknowledge the dignity interests of all parties, not just of the applicant, more adequately.

It is notable that, according to Munby J's judgement, Article 8(2) ECHR brings the interdependent, interpersonal and social dimensions of lives into focus, eschewing the liberal conception of the individual as an independent isolate. Foster further describes Article 8(2) as protecting 'the dignity rights of the many', but also as affirming the dignity interests of the claimant by placing an objective lens over Article 8(1) autonomy rights and placing them in a community setting.[112] In other words, considering the dignity interests of the claimant as an isolate does not make sense, given that dignity is constituted by a human, interpersonal component. Recognition of our human dignity is linked to, or generated by, our recognition of ourselves and others as fellow human beings.

The UN Human Rights Committee has not dissimilarly recognised the social and relational nature of dignity as compared with autonomy. In *Wackenheim v France* ('*Wackenheim*'), Monsieur Wackenheim applied to the Committee for a determination that an ordinance banning 'dwarf-tossing' competitions was discriminatory on the basis of disability. Monsieur Wackenheim was a man with dwarfism who wished to continue to earn his living by being 'tossed' and argued his case on the basis that his human dignity rested on his right to the work of his choice.

[109] Ibid 104.

[110] Foster considers a number of cases considered in *Burke*: Foster, *Human Dignity in Bioethics and Law* (n 31) 97–107. These include *Bland*; *D v United Kingdom* (1997) 24 EHRR 423 ('*D v UK*'); *Keenan v United Kingdom* 2001) 33 EHRR 913 ('*Keenan*'); *R (A, B, X and Y) v East Sussex County Council (No 2)* [2003] EWHC 167 (Admin) ('*East Sussex*'); *Price*; this and other jurisprudence on dignity is also discussed in: Mary Donnelly, *Healthcare Decision-Making and the Law: Autonomy, Capacity and the Limits of Liberalism* (Cambridge University Press, 2010) 213–23.

[111] Ultimately, orders were made that an appropriate lifting protocol be drafted according to the principles that he laid down in the judgement: *East Sussex*.

[112] Foster, *Human Dignity in Bioethics and Law* (n 31) 124–5.

However, the Human Rights Committee ultimately endorsed the argument of the State, which had submitted that 'dwarf-tossing' offended human dignity in the sense of 'public order' and the ban was upheld on that basis.[113]

Commentators alike agree that the Human Rights Committee came to a just decision in upholding a ban on 'dwarf-tossing' on the basis that it was a violation of human dignity.[114] This case is widely interpreted as one where the applicant relied on a concept of dignity as autonomy while the State and the Human Rights Committee relied on a different type of dignity that applied to society as a whole. It has been interpreted as not just respecting the applicant's dignity, but also the dignity of other people with dwarfism who, because of their disability, are typically subject to discrimination or unequal status.[115]

3.3.5 Summary and Conclusions on Dignity Recognising the Human as Interdependent

Dignity in the CRPD refers to the equal worth of all human beings, and dignity incorporates respect for autonomy but is also broader and more inclusive than autonomy. The section above addressed the challenging philosophical question of what it means to be human when we talk about human dignity. It rejected the concept of human in this context as a biological category on the grounds that it would amount to speciesism. It went on to consider, as an alternative, theories of personhood that depend on capacities other than autonomy as determinants, notably the capacity for sentience. However, it rejected such formulations of human dignity on the basis that any capacity-based theory – whether the capacity for autonomy or sentience – will be either over-inclusive (by including animals) or under-inclusive (by excluding adults with a severe and profound cognitive disability).

The concept of human dignity underpinning the CRPD must instead rest on a recognition of the interpersonal and interdependent components of personhood as informed by social meanings of the human. Dignity reflects this interpersonal component in particular because when we violate another's dignity, we also compromise our own. This conception of dignity draws on the work of philosophers including Anderson, who describes the human as imbued with social meaning, and Killmister, who recognises the difference between humans as 'natural kind' and humans as 'social kind'. Another way of explaining this is that we have different moral expectations of people whom we recognise as fellow humans.[116]

[113] United Nations Human Rights Committee, UN Doc CCPR/C/75/D/854/1999 (n 31).

[114] See, e.g., Foster, *Human Dignity in Bioethics and Law* (n 31) 96; Bedford (n 63) 320.

[115] Christopher McCrudden, 'In Pursuit of Human Dignity: An Introduction to the Current Debates' in Christopher McCrudden (ed), *Understanding Human Dignity* (Oxford University Press, 2013) 1, 40; Becchi (n 51) 24. See also Barclay, who describes 'dwarf throwing' as an affront to dignity because it is a violation of the equal status of people with dwarfism: Barclay, 'In Sickness and in Dignity: A Philosophical Account of the Meaning of Dignity in Health Care' (n 61) 138.

[116] Diamond (n 82) 106.

There are similarities between philosophical conceptions of the human and of human dignity as interpersonal, on the one hand, and legal formulations of dignity as revealed in the jurisprudence and commentary, on the other. The European Court of Human Rights has interpreted Article 8(2) ECHR as acknowledging the interdependence of the individual autonomous claimant, with the dignity interests of others. In *Wackenheim*, the Human Rights Committee found that the dignity of the claimant, the dignity of people with disability and the dignity of the community as a whole were violated by the practice of 'dwarf-tossing'. Mr Wackenheim's dignity was violated for the following reasons: his humanity was devalued; he was treated unequally due to his disability; he was tossed like a 'thing', not a person; and the 'dwarf-tossing' violated our moral expectations of his and our human personhood. In conclusion, human dignity as underpinning the CRPD includes but is broader than respect for autonomy.

3.4 *Dignity as Recognising the Embodied Nature of Personhood*

The fourth dimension of dignity is that it inheres in the person as embodied and as existing and living in a concrete, material world. Discussions on the meaning of dignity invariably focus on a person's body and the impact of the person's physical state on their mind and feelings, and on the feelings of the onlooker. In doing so, these discussions also emphasise the particular, and often begin with an examination of the marginalised, hard cases.

Foster describes how the autonomous man never really existed except in the abstract as an ideal, but that dignity, on the other hand, recognises that 'We exist in our bodies, and we exist in a social, political and physical environment.'[117] Foster's concept of human dignity looks at what makes humans 'thrive', suggesting' a link between nourishing the body and mind in a way that disrupts mind–body dualism.[118] Carozza similarly writes of dignity that: 'It … inher[es] always in an embodied 'I' rather than in a disembodied discourse … it is a hard fact.'[119] Autonomy, on the other hand, relates more readily to abstract legal and philosophical concepts including legal recognition, legal capacity, liberty and equality, and the associated civil–political rights. I argue, with others, that dignity puts flesh on these abstract concepts and rights by looking at what flows from them both in the adherence and the breach.

When writers try to explain dignity, they invariably begin with the image of a person whose dignity is being violated or compromised because of an infliction affecting both body and mind. Kittay begins her discussion of human dignity with the image of her daughter Sesha, naked except for her bath towel, an example both Killmister

[117] Foster, *Human Dignity in Bioethics and Law* (n 31) 12; Nedelsky criticises Kantian autonomy and independence as an 'illusion': Nedelsky (n 98) 45.
[118] Foster, *Human Dignity in Bioethics and Law* (n 31) 17.
[119] Carozza (n 63) 628.

and Crary draw on in their own considerations of dignity.[120] Anderson also opens with the depiction of an Alzheimer's patient suffering personal and physical neglect and explains how human dignity demands that her body be made 'fit for human society'.[121] Lady Hale opens her essay on dignity with a description of *Price v UK*, which concerned the physical ill-treatment and neglect of a woman with only partially formed limbs, a case referred to frequently in the dignity jurisprudence and literature.[122]

Dignity considers the particularities of human existence, with Foster describing his formulation of dignity as 'anthropological' because he derives it through examining a series of hard cases.[123] For him, dignity is a concept that, unlike autonomy, is grounded in the real, material world, applying to embodied people who have complex material lives intertwined with the lives of others.[124] Philosophers and lawyers alike tend to begin with the hard cases, with the case of the PVS patient or the conscious person with a severe and profound cognitive disability, to understand how human dignity works. These hard cases are not always easily or logically resolved by reference to autonomy but may be explained by respect for human dignity.[125]

In summary, the fourth dimension of human dignity proposed in this chapter is that human dignity inheres in the embodied person, and its meaning is derived from the particularities of peoples' lives. Considerations of dignity in the philosophical and legal literature and jurisprudence typically begin with depictions of a person who is fragile in body and mind. For this reason, understanding dignity requires examination of the hard cases, which are often put to one side and marginalised in interpretations of Article 12 that privilege autonomy. Recognition of universal legal capacity requiring a 'best interpretation' of autonomous wishes begins with assumptions of what is typical, extending general rules to marginal cases without always acknowledging the actualities of a person's existence. Autonomy underpins a conception of personhood premised on the ideal of the abstract, independent, isolated man, who has never really existed in the real world.

Chapter 2 described how a strict social model of disability risks denying the reality of impairment. A strict social model would focus solely on the changes in society required to accommodate impairment, and in so doing would take no account of the specificity and particularity of impairment. Human dignity as attaching to the embodied person, interdependent and interrelated with others, recognises that

[120] Kittay, 'Equality, Dignity and Disability' (n 32) 96; Killmister, 'Disability, Respect and Cognitive Disability' (n 47) 3; Crary (n 83) 2.

[121] Anderson (n 83) 282.

[122] Hale (n 2) 101–2. See also Foster, who opens with a depiction of a naked girl with an intellectual disability, lying exposed on a hospital trolley: Foster, *Human Dignity in Bioethics and Law* (n 31) 2.

[123] Foster, *Human Dignity in Bioethics and Law* (n 31) 1.

[124] For his argument that autonomy does not account for people's lives in the real world, see: Foster, Charles, *Choosing Life, Choosing Death: The Tyranny of Autonomy in Medical Ethics and Law* (Hart Publishing, 2009) 4.

[125] Foster, *Human Dignity in Bioethics and Law* (n 31) 3.

impairment has an impact on a person's body and mind, as well as on the lives of others. It positions disability within a social model that recognises the residual impacts of impairment.

3.5 *Dignity as Underpinning and Affirming the Indivisibility of Human Rights*

The fifth and final dimension of dignity proposed as underpinning the CRPD is that it embodies and affirms the indivisibility of human rights. While autonomy has traditionally been viewed as underpinning civil–political rights, I argue that dignity underpins both civil–political and socio-economic rights, and in so doing demonstrates and drives the principle of indivisibility.

As established in Chapter 3, this book has adopted a concept of the principle of indivisibility of human rights with two broad components. First, indivisibility recognises interdependencies between rights, so that some rights cannot be realised without the realisation of other rights; and second, it demands that the two categories of rights – civil–political and socio-economic – be considered as of equal importance. The bifurcation of rights into the two categories has historically framed civil–political rights as requiring restraint by the State, abstention from intervening in the private sphere, as cost-free, and as requiring immediate implementation. The corollary is that socio-economic rights are framed as requiring positive state action and intervention in the private realm, considerable resources, and progressive implementation. Indivisibility is further evidenced and driven by disruption of these indicators between and across the two categories.

This section begins with a review of those provisions in human rights instruments, including the CRPD, that emphasise the link between dignity and socio-economic rights. Following this is an examination of some of the jurisprudence on dignity that illustrates how the fulfilment of civil–political rights can depend on the fulfilment of socio-economic rights, demonstrating the principle of indivisibility.

3.5.1 In Human Rights Instruments – Dignity and Socio-economic Rights

Section 2 set out those provisions in the foundational human rights instruments and the CRPD where the inherent dignity of all human beings is affirmed as an overarching principle. Dignity is usually listed as a pre-eminent value or quality preceding, or alongside, affirmations of the rights to liberty, justice and equality,[126] all of which traditionally fall within the category of civil–political rights. As explained above, dignity is closely associated with the civil–political rights to be free from

[126] For example, 'To reaffirm faith in fundamental human rights, in the dignity and worth of the human person, in the equal rights of men and women and of nations large and small' UN Charter (n 6) Preamble para 1. See also 'the inherent dignity and … the equal and inalienable rights of all members of the human family [as] the foundation of freedom, justice and peace in the world': *UN Declaration* Preamble.

torture and inhuman or degrading treatment, as well as the right to privacy and family life. But that dignity's impact extends beyond the category of civil–political rights, is evident through its express referencing in the ICESCR, as well as in other human rights instruments where it is linked with socio-economic rights.

In this respect, the UN Declaration's Preamble reads:

> Whereas the peoples of the United Nations have in the Charter reaffirmed their faith in fundamental human rights, in the dignity and worth of the human person and in the equal rights of men and women and have determined to promote social progress and better standards of life in larger freedom. [emphasis added][127]

In the above paragraph, dignity is linked with rights to 'social progress' and improved standards of living; and the fulfilment of the traditionally civil–political right to freedom is also linked with achievement of these socio-economic rights. Article 22 of the UN Declaration provides that every person has 'the right to social security and … realisation … of the economic, social and cultural rights indispensable for his dignity and the free development of his personality'. It thus expressly provides that fulfilment of socio-economic rights is 'indispensable' for human dignity – and our development as human persons. Article 23(3) provides:

> Everyone has the right to just and favourable remuneration ensuring for himself and his family an existence worthy of human dignity, and supplemented, if necessary, by other means of social protection. [emphasis added]

Articles 22 and 23 are the only two substantive articles of the UN Declaration that refer to dignity, and they unequivocally ground the recognition of dignity in the realisation of socio-economic rights that require positive action from the State, impacting the family and private sphere (i.e. the provision of 'social protection' or welfare).

The socio-economic right to education has been linked with human dignity, both in the ICESCR and the CRPD,[128] and Article 25 CRPD also links the right to health care with respect for human dignity.[129] That dignity is linked with living conditions, and the right to shelter and accommodation is also expressly recognised by the UN Disability Committee, which, in relation to Article 19 'Living independently and being included in the community', explains that 'The foundation of the Article is the

[127] *UN Declaration* Preamble para 5.

[128] 'Dignity is also implicated in certain particular claims about socio-economic rights. Article 13(1) *ICESCR*, recognizes a right to education and lays it down that "education shall be directed to the full development of the human personality and the sense of its dignity"': Waldron (n 36) 3; see also how education allows for the 'development of human potential and sense of dignity and self-worth': *CRPD* Article 24 para 1(a).

[129] See also: 'States Parties shall take measures … to ensure that working and living conditions of migrant workers and members of their families in a regular situation are in keeping with the standards of fitness, safety, health and principles of human dignity.' *International Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families*, signed 18 December 1990, 2220 UNTS 3, Article 70 (entered into force 1 July 2003).

core human rights principle that all human beings are born equal in dignity and rights and all life is of equal worth.'[130] The UN Disability Committee further acknowledges that Article 19 CRPD includes a mix of civil–political and socio-economic rights,[131] incorporating a specific instance of the right to legal capacity in choice of residence.[132]

The Vienna World Conference on Human Rights in 1993 had also adopted dignity as an organising principle, boosting its status as a human rights norm. As described in Chapter 3, a significant outcome from this conference was an affirmation of the indivisibility of human rights, such affirmation proving pivotal in the growing recognition of the principle of indivisibility in UN doctrine.[133] The Vienna Declaration's affirmation of dignity as a fundamental human rights principle was closely linked with the achievement of socio-economic rights and the alleviation of poverty.[134] In this way, the Vienna Declaration reflects the nexus in the UN human rights conventions of dignity and socio-economic rights and the principle of indivisibility.

3.5.2 The Jurisprudence on Socio-economic Rights and Dignity

These links between dignity, socio-economic rights and the principle of indivisibility are beginning to emerge in the growing jurisprudence on dignity. The following cases show that rights to liberty, equality and asylum may depend on fulfilment of rights to shelter, subsistence or social assistance; and that the right to be free from inhuman treatment may depend on fulfilment of the right to access adequate health care.

The South African constitution is noteworthy for its inclusion of socio-economic rights to housing, health care, food, water, social security, and education,[135] as well

[130] Committee on Economic Social and Cultural Rights, *General Comment 5: Persons with Disabilities*, 11th sess (9 December 1994) [2].

[131] Ibid [7].

[132] Ibid [20]. McCrudden also catalogues how dignity has been linked with the socio-economic right to work: McCrudden, 'Human Dignity and Judicial Interpretation of Human Rights' (n 4) 661, 669.

[133] World Conference on Human Rights, *Vienna Declaration and Programme of Action*, UN Doc A/CONF.157/24 (25 June 1993) part 1 [5].

[134] '…further major fillip to the use of dignity in the international sphere was given by the adoption of dignity as the central organizing principle of the Vienna World Conference on Human Rights in 1993. The Declaration and Programme of Action adopted dignity as foundational not just to human rights in general but also adopted the concept of dignity in their provisions dealing with particular areas of human rights, such as the treatment of indigenous peoples, the prohibition of torture, the prohibition of gender-based violence and harassment, the abolition of extreme poverty, and the issue of biomedical ethics.' McCrudden, 'Human Dignity and Judicial Interpretation of Human Rights' (n 4) 670. See also 'It is now undisputed that all human rights are indivisible, interdependent, interrelated and of equal importance for human dignity. Therefore, states are as responsible for violations of economic, social and cultural rights as they are for violations of civil and political rights.' Stephen P Marks, 'The Past and Future of the Separation of Human Rights into Categories' (2009) 24 *Maryland Journal of International Law* 209, 233, quoting International Commission of Jurists, *Maastricht Guidelines on Violations of Economic, Social and Cultural Rights* (26 January 1997) [4].

[135] *Constitution of the Republic of South Africa* (Act 108 of 1996) s 26 'Everyone has the right to have access to adequate housing'; s 27(1) 'Everyone has the right to have access to: (a) health

as the inclusion of a 'right [for persons] to have their dignity respected and protected', and a provision that applies dignity as an 'interpretive principle'.[136] *Government of the Republic of South Africa and Others v Grootboom and Others* ('*Grootboom*') is a case from the Constitutional Court of South Africa that has attracted wide interest, both because it involves the adjudication of socio-economic rights,[137] and it grounds the value of these rights in respect for human dignity.[138]

Grootboom concerned squatters who had been evicted off private land and found themselves homeless and living in deplorable conditions. Article 26 of the South African Constitution provides for a right to adequate housing and Article 28(1)(c) provides for a child's right to shelter. Yacoob J, in delivering the Court's unanimous decision, wrote that: 'A society must seek to ensure that the basic necessities of life are provided to all if it is to be a society based on human dignity, freedom and equality'[139] and 'In short, I emphasise that human beings are required to be treated as human beings.'[140] These affirmations suggest that human dignity is perceived as founding our civil, economic, social, political and cultural personhood. They also

care services, including reproductive health care; (b) sufficient food and water; and (c) social security, including, if they are unable to support themselves and their dependants, appropriate social assistance'; s 29 'Everyone has the right to a basic education, including adult basic education; and to further education.'

[136] Ibid s 1 'The republic of South Africa is … founded on the following values: (a) Human dignity, the achievement of equality and the advancement of human rights and freedoms …' s 19 'Everyone has inherent dignity and the right to have their dignity respected and protected.'

[137] Marks (n 134) 230–1 quoting from *Draft International Covenant on Human Rights and Measures of Implementation: Future Work of the Commission on Human Rights*, GA Res 421E (V), UN Doc A/1775 (4 December 1950); Dorothea Anthony, 'The Human Rights Principle of Indivisibility and Its Ideological Significance in the Contemporary Age' (Dissertation, University of New South Wales, 2018) 173 http://unsworks.unsw.edu.au/fapi/datastream/unsworks:51572/SOURCE02?view=true>; Jennifer Sellin, 'The Justiciability of the Right to Health – Access to Medicines – The South African and Indian Experience' (2009) 2(4) *Erasmus Law Journal* 445, 456; Venitia Govender, 'Economic, Social and Cultural Rights in South Africa: Entitlements, Not Mere Policy Options' in Berma Klein Goldewijk, Adalid Contreras Baspineiro, Paulo Câesar Carbonari (eds) *Dignity and Human Rights: The Implementation of Economic, Social and Cultural Rights* (Intersentia 2002) 75, 79; Ida Elizabeth Koch, 'Economic, Social and Cultural Rights as Components in Civil and Political Rights: A Hermeneutic Perspective' (2006) 10(4) *International Journal of Human Rights* 405, 427; Li-Ann Thio, 'The Universal Declaration of Human Rights at 60: Universality, Indivisibility and the Three Generations of Human Rights' (2009) 21(1) *Singapore Academy of Law Journal* 293, 316.

[138] Andrea Broderick, *The Long and Winding Road to Equality and Inclusion for Persons with Disabilities: The United Nations Convention on the Rights of People with Disabilities* (Intersentia, 2015) 197; Liebenberg (n 88) 3; McCrudden, 'Human Dignity and Judicial Interpretation of Human Rights' (n 4) 694; Evadné Grant, 'Human Dignity and Socio-economic Rights' (2012) 33(3) *Liverpool Law Review* 235, 236–7; Christian Courtis, 'Standards to Make ESC Rights Justiciable: A Summary of Exploration' (2009) 2 *Erasmus Law Review* 379, 391; Carozza (n 63) 618.

[139] *Government of the Republic of South Africa and Others v Grootboom and Others* (2000) (1) SA 46 ('*Grootboom*').

[140] Ibid [83].

echo the words of the UN General Assembly in 1950 that '[W]hen deprived of economic, social and cultural rights … the man does not represent the human person whom the Universal Declaration regards as the ideal of the free man.'[141]

Noteworthy in drawing the relationship between dignity and the indivisibility of human rights is the statement of Yacoob J in *Grootboom* that:

> All the rights in our Bill of Rights are inter-related and mutually supporting. There can be no doubt that human dignity, freedom and equality, the foundational values of our society, are denied those who have no food, clothing or shelter.[142]

Govender writes of the South African Constitution that 'the very core of economic, social and cultural rights is human dignity and equality', and Liebenberg observes that the South African Constitutional Court has 'invoked dignity as the central value informing its approach to the interpretation of socio-economic rights.[143]

According to Feldman, in some cases dignity is used to limit autonomy, as if socio-economic rights are invoked by dignity to limit civil–political rights. He describes *R v Secretary of State for Social Security, ex parte Joint Council for the Welfare of Immigrants* ('*Council for the Welfare of Immigrants*')[144] in which regulations that withdrew government benefits from asylum seekers were found to be unlawful. The Court held that the regulations made the right to asylum 'nugatory' by making it impossible for asylum seekers to remain in the UK unless they lived in a state of intolerable destitution. The outcome implicitly acknowledges that the civil–political right to asylum depended on the fulfilment of the basic socio-economic rights to food and subsistence. Feldman explains this decision in terms of the Court upholding dignity, concluding that:

> dignity is an important value which may generate duties on public authorities to provide assistance to those who would otherwise be left destitute. This gives rise to something in the nature of a socio-economic right, which extends at least as far as is necessary to maintain life and a minimum level of dignity.[145]

In *Council for the Welfare of Immigrants*, the rights to civil–political liberty and asylum depended on fulfilling the socio-economic right to social assistance. Fulfilment of this latter right required positive action from the State, expenditure of resources and intervention in the private lives of the claimants.

Grootboom and the *Council of Welfare of Immigrants* also illustrate, I argue, the proposition that dignity recognises embodied personhood, underpinning the indivisibility of human rights. In post-Apartheid South Africa, many people have access to new-found civil–political personhood; but, without material subsistence to

[141] Marks (n 134) 240.
[142] *Grootboom* [23].
[143] Govender (n 137) 89; Liebenberg (n 88) 3; *Khosa and Others v Minister for Social Development and Others* 2004 (6) SA 505 (Constitutional Court).
[144] [1996] 4 All ER 385.
[145] David Feldman, 'Human Dignity as a Legal Value' (Pt 2) [2000] *Public Law* 61, 61.

nourish both mind and the body, those rights are hollow. Similarly, in *Council for the Welfare of Immigrants*, while the asylum seekers had their civil–political personhood recognised in acknowledgement of their right to asylum, the right was nugatory without recognition of the needs generated by the embodied nature of their personhood. These same connections between the indivisibility of human rights, dignity and embodied personhood are also evident in the following cases on the right to be free from torture and inhuman or degrading treatment.[146]

In *D v United Kingdom* (1997) 24 EHRR 423 ('*D v UK*'), the applicant was in the terminal stages of an HIV-related illness and obtained relief from deportation on the basis that deportation would amount to a breach of Article 3 ECHR. The European Court of Human Rights concluded that the lack of adequate medical facilities and social support in Mr D's home country of St Kitts would have resulted in him suffering inhuman and degrading treatment if deported. The judgement can be interpreted as asserting that the Article 3 right to be free from inhuman treatment depended on fulfilling the socio-economic rights to health and social support services. Koch describes this judgement as illustrating 'the organic interdependence between Article 3 and the social right to health care of a dying AIDS patient';[147] that is, it illustrates the principle of the indivisibility of human rights.

The European Court of Human Rights in *Pretty* described the judgement in *D v UK* as being founded on the recognition of human dignity, a finding affirmed by Munby J in *Burke*.[SS] Commenting on *D v UK* but also extrapolating more widely, Munby J opines that the dignity interest of the dying may ground either the right to be protected from unwanted medical treatment or the right to be 'protected from lack of treatment'.[148] That is, respect for the dignity of the dying requires the fulfilment of the socio-economic right to adequate health care. In emphasising that adequate health care may require either restraint or positive action by the state, Munby J's comment also suggests a disruption of the dichotomy of the traditional indicia associated with civil–political and socio-economic rights. The fulfilment of the right to adequate health care may even require the withdrawal of services for the dying.[149]

[146] In another case, the House of Lords held that it was unlawful for the Secretary of State to deny all means of subsistence to an asylum seeker so that he was reduced to living and begging on the streets: see *R (Adam and Limbuela) v Secretary of State for the Home Department* [2005] UKHL 66 ('*Limbuela*'). Lady Hale writes of *Limbuela* that 'Human dignity was the fundamental value which underlay that decision even if we did not say so.' Hale (n 2) 107.

[147] Ida Elisabeth Koch, 'Social Rights as Components in the Civil Right to Personal Liberty: Another Step Forward in the Integrated Human Rights Approach?' (2002) 20(1) *Netherlands Quarterly of Human Rights* 29, 35.

[148] *Burke* [80].

[149] See also *Keenan* in which the European Court of Human Rights found a violation of Article 3 when a mentally ill prisoner was held in solitary confinement without proper medical monitoring, and where he ultimately committed suicide. The Court in this case found that 'The lack of appropriate medical treatment may amount to treatment contrary to Article 3.' *Keenan* [110] cited in *Burke* [67]. Donnelly explains the Court's reasoning as imposing positive obligations

Human rights theorists more broadly have expressed the view that dignity underpins all human rights, both civil–political and socio-economic. Carbonari argues for human dignity as a coherent ethical underpinning for human rights as moral, legal, political and social subjects.[150] Dignity is the basis of our personhood in the civil, social, economic, political and cultural spheres because 'ESCR [economic, social and cultural rights] are as fundamental to human agency and dignity and as definitional of human existence and fulfillment as CPR [civil and political rights].'[151]

3.5.3 Summary and Conclusions on Dignity and the Principle of Indivisibility

It is proposed that dignity recognises the inherent and equal worth of all human persons, and includes respect for autonomy, but is also wider than being merely equivalent to autonomy. Historically, autonomy has been privileged in rights discourse because it underpins civil–political rights, which have, in turn, been privileged over socio-economic rights. Dignity in the CRPD encompasses autonomy but is broader and underpins both civil–political and socio-economic rights, recognising their indivisibility.

The link between respect for dignity and the fulfilment of civil–political rights is widely accepted and manifest in associations between dignity and the right to be free from torture, the right to legal capacity, the right to liberty, and the right to equality. However, links are also frequently drawn between dignity and the fulfilment of socio-economic rights, as expressed in the UN Declaration, the ICESCR and the CRPD. Rights to shelter and accommodation, education and social progress are all closely associated with respect for fundamental human dignity.

The jurisprudence on dignity is only emerging, but the South African Constitutional Court is taking the lead in developing dignity as a legal principle and grounding it in the indivisibility of socio-economic and civil–political rights. In *Grootboom*, fulfilment of the civil rights to liberty and equality depended on fulfilling the socio-economic rights to shelter and subsistence. In the UK case of *Council for the Welfare of Immigrants*, the fulfilment of the civil–political right to asylum was meaningless without the provision of basic subsistence. In *D v UK*, violation of the prohibition against inhuman treatment resulted from failure to fulfil rights of access to adequate health care and support services.

Of note in these cases is that, while the applicants may have had legal personhood and legal capacity, such personhood was impotent and those rights were hollow,

on the state to provide mental health care, in order to protect a person from inhumane treatment and respect their dignity: Mary Donnelly, 'From Autonomy to Dignity: Treatment for Mental Disorders and the Focus for Patient Rights' (2008) 26(2) *Law in Context* 37, 55.

[150] Paulo Câesar Carbonari, 'Human Dignity as a Basic Concept of Ethics and Human Rights' in Berma Klein Goldewijk, Adalid Contreras Baspiniero and Paulo Câesar Carbonari (eds), *Dignity and Human Rights: The Implementation of Economic, Social and Cultural Rights* (Insentia, 2002) 35, 39–40.

[151] That is, civil-political rights: Marks (n 134) 240; see also Mosissa (n 93) 128.

given their actual circumstances. To recognise their dignity, acknowledgement of their interdependent and embodied personhood was required, together with fulfilment of their socio-economic rights.

4 DIGNITY AND THE ARTICLE 12 LITERATURE

The sections above have argued that dignity as a legal principle is underpinned by the indivisibility of human rights, recognising the interdependence of rights and the equal importance of socio-economic and civil–political rights. This section goes on to explain how dignity, while underpinning the indivisibility of human rights, can also fill the breach left by autonomy to recognise the personhood of all adults and to provide a legal principle for decision-making under Article 12.

It begins by identifying that there has been scant attention paid to the complexities of dignity in interpreting Article 12. In this context, dignity has often been invoked in the limited sense of autonomy and has also been linked with equality and non-discrimination.[152] However, as described below, a few commentators have promoted dignity as a value to underpin personhood and Article 12 decision-making.[153]

4.1 Article 12 and Autonomy

Much of the commentary relating to Article 12 that mentions dignity contends or assumes that dignity is linked with autonomy[154] or is limited in meaning to the

[152] See further discussion in Chapter 7.

[153] For the most part, except for the connections made with autonomy and equality, the Article 12 literature tends to refer to dignity incidentally or rhetorically. For example: 'The Convention draws on the principles of the UN Charter – namely, the inherent dignity and the equal and inalienable rights of all members of the human family as the foundation of freedom, justice and peace in the world'; Rosemary Kayess and Ben Fogarty, 'The Rights and Dignity of Persons with Disabilities' (2007) 32(1) *Alternative Law Journal* 22, 23. Or sometimes dignity is merely incorporated in a list of other important values and human rights, for example 'a long list of CRPD rights, including those of inherent dignity, non-discrimination, liberty and security, freedom from torture or cruel, inhuman or degrading treatment': Terry Carney et al, 'Realising "Will, Preferences and Rights": Reconciling Differences on Best Practice Support for Decision-Making?' (2019) *Griffith Law Review* 357, 370–1; see also: 'Equality and non-discrimination along with respect for dignity, individual autonomy and freedom to make one's choices have been recognized as general principles of the CRPD': International Disability Alliance, *Legal Opinion on Article 12 of the CRPD* (www.internationaldisabilityalliance.org/representation/legal-capacity-working-group, 2008).

[154] See Gerard Quinn and Abigail Rekas-Rosalbo, 'Civil Death: Rethinking the Foundations of Legal Personhood for Persons with a Disability' (2016) 56 *Irish Jurist* 286, 299; de Bhailís, Clíona and Eilionóir Flynn, 'Recognising Legal Capacity: Commentary and Analysis of Article 12 CRPD' (2017) 13(01) *International Journal of Law in Context* 6, 17; 'A statutory measure that limits a person's legal capacitiy affects that person's rights to equality, dignity and psychological integrity.' Holness (n 25) 330; Bach and Kerzner (n 73) 86, 89, 134, 153, 163, 178, 184.

dignity of risk.[155] The concept of the dignity of risk has already been described in Section 3.2.1 above. It is often used to ground the right of adults with cognitive disability to make unwise or risky decisions in the same way that others are free without paternalistic intervention to make decisions that may risk harm to themselves or others.[156] In this way, the dignity of risk, while an important component of dignity, reflects the limited meaning of dignity as autonomy.

For example, the ALRC defines dignity as one of the guiding principles of the CRPD and then goes on to write that 'dignity as a human being is linked to self-determination, decision making and choice'; and it makes frequent references to the importance of respecting the dignity of risk.[157] As explained in Chapter 2, the outcome-based test for legal capacity – whereby the unreasonableness of a decision is the starting point to work backwards to a determination of incapacity – has been heavily criticised as violating an individual's autonomy and their 'dignity of risk'.[158] This limited formulation of dignity as the dignity of risk is used widely to justify interpreting Article 12 as requiring universal legal capacity and the abolition of guardianship.

Düwell is one writer who endeavours to formulate a wider conception of dignity in the CRPD by proposing that it include the '*possibility* of living an autonomous life'[159] [emphasis added]. Düwell views dignity as an attribute of all human humans; as having an empirical, not just abstract, dimension; as underpinning claims to both positive and negative human rights; and as requiring both state restraint and state action, depending on an individual's contingent circumstances.[160] His theory of dignity aligns, to an extent, with the concept of five-dimensional dignity, with

[155] Gerard Quinn, 'Concept Paper "Personhood and Legal Capacity": Perspectives on the Paradigm Shift of Article 12 of the CRPD' (Conference Paper, HPOD Conference, 20 February, 2010) 19 www.inclusiveirelandie/document/HarvardLegalcapacitygqdraft2.doc; Eilionóir Flynn and Anna Arstein-Kerslake, 'State Intervention in the Lives of People with Disabilities: The Case for a Disability-Neutral Framework' (2017) 13(1) *International Journal of Law in Context* 39, 48; Bruce Alston (n 134) 24.

[156] Doyle and Flynn (n 67) 174.

[157] Australian Law Reform Commission, *Equality, Capacity and Disability in Commonwealth Laws: A Final Report* (2014) 43, 53, 75, 85, 102, 154, 170, 174, 213.

[158] 'It is to recognise the "dignity of risk" so that individuals with impairments are allowed to make unwise choices without paternalistic incursions into their lives': Camillia Kong, 'The Convention on the Rights of Persons with Disabilities and Article 12: Prospective Feminist Lessons against the "Will and Preferences" Paradigm' (2015) 4(4) *Laws* 709725; 'The General Comment states that there must be safeguards to protect against undue influence, yet these must respect the rights, will and preferences of the person, including the right to take risks and make mistakes.' Lucy Series and Anna Nilsson, 'Article 12 CRPD: Equal Recognition before the Law' in Ilias Bantekas, Michael Ashley Stein and Anastasiou Dimitris (eds), *The UN Convention on the Rights of Persons with Disabilities: A Commentary* (Oxford University Press, 2018) 339, 371.

[159] Marcus Düwell, 'Setting the Agenda for Ethical Debates about the Rights of Persons with Disabilities' in Joel Andersen and Jos Philips (eds), *Disability and Universal Human Rights: Legal, Ethical, and Conceptual Implications of the Convention on the Rights of Persons with Disabilities* (Netherlands Institute of Human Rights, 2012) 185, 187.

[160] Ibid 186–91.

its embrace of positive and negative rights and recognition of the materiality of our existence. However, dignity as 'the possibility of living an autonomous life' excludes someone like Sesha and does not explain how, when we fail to recognise Sesha's dignity, we ultimately fail to respect our own humanity and self-worth. Düwell's concept of dignity elides with or equates to a very thin version of autonomy.

4.2 *Article 12 and Equality*

While dignity conceptualised as no more than autonomy is a persistent theme in some of the Article 12 literature, there is also a recurring theme linking discrimination with a violation of inherent dignity. *General Comment No 1* suggests that dignity is equivalent to autonomy, but that it is also closely linked with the right to non-discrimination and equality in that 'Freedom from discrimination in the recognition of legal capacity restores autonomy and respects the human dignity of the person.'[161] According to the UN Disability Committee, denial of autonomy together with discrimination in the recognition of legal capacity combine to violate the dignity of people with disability.[162]

Chapter 6 argues that the notion of substantive, inclusive equality underpinning the CRPD and Article 12 allows for or demands the differential treatment of decision-making by substitutes in some cases, in order to achieve inclusive equality. It also describes how *General Comment No 6* proposes a four-dimensional approach to inclusive equality, with two of those dimensions expressly recognising the close relationship between inclusive equality and the recognition of dignity. Suffice to say here that to promote social inclusion and recognise dignity, substantive, inclusive equality does not always demand identical treatment for persons with disability but may require a differential response that recognises the difference of impairment.

4.3 *Article 12: Beyond Autonomy and Equality*

As already mentioned, there is scant consideration in the literature of how dignity formulated as a wider concept than autonomy may underpin an interpretation of Article 12. And yet at least one submission to the ALRC from the Australian Research Network on Law and Ageing ('Law and Ageing') does advocate this broader role – in

[161] *United Nations Committee on the Rights of Persons with Disabilities 'General Comment No. 1 (2014) Article 12: Equal Recognition Before the Law CRPD/C/GC/1' (2014)* [33]. See also [4] which provides more generally: 'The present general comment reflects an interpretation of Article 12 which is premised on the general principles of the Convention, as outlined in Article 3, namely respect for the inherent dignity, individual autonomy – including the freedom to make one's own choices – and independence of persons'.

[162] The *CRPD*'s Preamble para 8 also draws a link between discrimination and dignity in 'Recognising … that discrimination against any person on the basis of disability is a violation of the inherent dignity and worth of the human person.'

particular, to uphold the human rights of people with cognitive disability whose capacity for autonomy may be limited. Law and Ageing noted:

> the importance of looking beyond the concept of promoting the personal autonomy of persons, to include the wider right of respect for the person's dignity. It has been recognised that dignity is a wider concept than autonomy, and a universal value to which all persons are entitled. It therefore has special relevance for those whose capacity is compromised, either because of conditions producing fluctuating capacity, or for more chronic situations.[163]

A handful of commentators have considered what this wider conception of dignity may be in the specific context of Article 12.

Bilchitz considers how dignity can be used to interpret Article 12 as allowing for decision-making by substitutes for adults with mental illness, acknowledging that some people at some times will not have the autonomy to make decisions. For Bilchitz, autonomy is to be valued if present; but if not present, then it is essential to find other qualities in people's lives that found their inherent dignity. However, Bilchitz's account of dignity is based on capacities: either the capacity for an individual to consciously experience the world or 'the ability of individuals to develop purposes and to seek to achieve them'.[164] As explained above,[165] any concept of dignity that is based on capacities or abilities is ultimately either over-inclusive or under-inclusive.[166] Bilchitz's criteria are both: the capacity to have a conscious experience of the world is over-inclusive as it would include non-human animals, and it is under-inclusive in terms of excluding people in a PVS.

Celik draws on an extensive body of philosophical and political literature on the 'vulnerable subject' to argue that the personhood envisaged by Article 12 CRPD is founded on a concept of dignity grounded in relational autonomy and vulnerability. Fineman proposed that the 'vulnerable subject' should replace the autonomous, independent, rational subject of liberal theory, as a starting point to understanding the relationship between individuals and the State, and the extent and nature of the State's obligations towards us.[167] The vulnerable subject recognises that we are all vulnerable to greater or lesser extents at different times in our lives and that the nature of our relationship with each other and with the State varies accordingly.

[163] ALRC Report 76.

[164] Bilchitz (n 73) 431.

[165] See Section 3.3.2.

[166] 'These accounts are attractive in identifying attributes that may offer a more intuitively appealing basis for moral status than practical rationality or self-awareness, and in reducing, to varying extents, the proportion of humanity excluded from full moral status. But because they exclude some humans, and may include some non-human animals, they do not fully capture common sense views about moral status and will be unacceptable to some philosophers': Wasserman et al (n 87).

[167] Martha Fineman, 'Beyond Identities: The Limits of an Anti-discrimination Approach to Equality' (2012) 92(6) *Boston University Law Review* 1713.

Celik argues that the very concept of supported decision-making recognises the vulnerable, dependent subject, whose autonomy is not found through enjoying 'negative liberties' but achieved through the guarantee of rights.[168] She rejects both a 'negative liberty' view of autonomy as fulfilled only through State restraint and a Kantian view of dignity as limited to rationality. Vulnerability for Celik acknowledges the embodied nature of personhood and our dependencies on others and becomes a tool for defining the obligations of the State towards us.

Celik's concept of dignity, in referencing the vulnerable subject, has much in common with other concepts of dignity that reject pure Kantianism. It implies recognition of the equal worth of all humans but recognises the embodied subject and the relational and social nature of personhood. Celik proposes that Article 12 anticipates the universal, vulnerable subject because personhood is defined by the State's obligations to us to provide supports, and relational autonomy is the analytic tool used to determine which supports are lacking and which are needed. However, I argue that dignity as a basis for recognising personhood and respect for dignity as a basis for intervention have more resonance in a human rights context, given their reiterative affirmation in human rights and humanitarian instruments. Human dignity acknowledges our vulnerability as humans (not just as one species of animal) and also that personhood cannot be achieved or measured in degrees.

Donnelly considers how dignity can be used as a way of valuing people who are not autonomous. She writes that 'a consequence of the legal and ethical fixation on autonomy has been a lack of conceptual engagement with the position of people who cannot make autonomous decisions'.[169] She argues that for adults with impaired capacity, autonomy should be respected by promoting participative decision-making, but that dignity should serve as a 'right' or value to ensure that the human rights of the non-autonomous are upheld. She does not expressly propose dignity as an inclusive basis for personhood to replace autonomy but does rely on the ECHR jurisprudence to argue for ongoing development of the concept of dignity to protect the rights of adults with impaired capacity in the provision of mental health services.

Donnelly's description of dignity as a legal right or principle that underpins human rights aligns in some respects with the formulation of five-dimensional dignity. It preserves recognition and respect for autonomy for those adults who are capable of autonomy, and, in relying on Article 3 and Article 8 ECHR jurisprudence, it emphasises the importance of positive rights to protection.[170] By way of comparison however, the formulation of five-dimensional dignity is more expressly grounded in philosophical as well as legal formulations of dignity. I also propose five-dimensional dignity to serve not just as an interpretive legal principle but as a foundation for recognition of personhood in specifically interpreting the CRPD and Article 12.

[168] Celik (n 61) 941.
[169] Donnelly, *Healthcare Decision-Making and the Law* (n 110) 176.
[170] Ibid 218, 221.

Carter is critical of interpretations of Article 12 that require the abolition of guardianship and argues that guardianship and the decisions made by guardians can recognise human dignity. She is sceptical of the benefits of a human rights approach to decision-making for adults with cognitive disability because it has resulted in a disproportionate focus on civil–political rights at the expense of socio-economic rights.[171] She defends best practice guardianship as ensuring human flourishing and as achieving social justice for adults with cognitive disability.[172] Carter criticises the dominance of the 'least restrictive means' principle found in mental health and guardianship legislation because it allows state intervention only as a last resort, leading to an over-emphasis on proceduralism at the expense of ensuring positive substantive outcomes for adults. Carter describes the 'least restrictive means' as emphasising concepts of 'negative liberty' and criticises it as becoming a justification for the 'lazy state' whereby governments disavow responsibilities towards their citizens on the basis that they are upholding their human rights.[173] She concludes that:

> the governing philosophical principle for guardianship legislation should be the promotion of the human dignity of the person with a disability. The operational principle that flows from this is the promotion of the personal and social well-being of the person with a disability.[174]

For Carter, dignity allows for positive state actions, intervention in the private sphere, recognition of relationships including relationships of care, and a focus on substantive outcomes to be achieved in the real world. Carter's concept of dignity is consistent with the concept of dignity developed in this chapter to underpin an interpretation of Article 12. However, she is reluctant or ambivalent to apply it within a human rights framework because of the dominance traditionally accorded to civil–political rights.

In conclusion, there has been scant consideration of how Article 12 can be interpreted and applied to recognise human dignity, not just autonomy. Bilchitz's

[171] Barbara Carter, 'Adult Guardianship: Human Rights or Social Justice?' (2010) 18(1) *Journal of Law and Medicine* 122, 145–6.

[172] 'Guardianship is about working in the way that will best enable the represented person to grow and flourish. In order to grow and flourish, the environment must be stable and healthy…. Much of a guardian's work is about trying to clear away the impediments to a person's growth and flourishing and help them reach a stage where they do not need the intensive support of a guardian any longer.' Barbara Carter, 'Seeking the Essence of Guardianship: Beyond the United Nations Convention on the Rights of Persons with Disabilities' (Conference Paper, World Guardianship Congress, 15–16 October 2012) 3 <https://agac.org.au/conference-papers/72-2012-oct-2nd-world-congress-melbourne>; see also: 'Supported and substituted decision makers do this best when they act as agents for the promotion of human dignity and human flourishing.' Anita Smith, 'Are Guardianship Laws and Practices Consistent with Human Rights Instruments?' in A Kimberly Dayton (ed), *Comparative Perspectives on Adult Guardianship* (Carolina Academic Press, 2014) 247, 271.

[173] Carter, 'The Case for Dignity as the Governing Principle in Adult Guardianship' (n 33) 3.

[174] Ibid 4.

concept of dignity as the capacity to experience the world, or as the ability to develop purposes and seek to achieve them, ultimately takes the value of dignity no further than a thin conception of autonomy. Celik links dignity with the idea of the vulnerable person, but vulnerability has the disadvantage of being novel terminology in the human rights lexicon. Donnelly identifies that the legal focus on autonomy has resulted in failure to consider adequately the rights of the non-autonomous. She proposes that dignity as a legal principle developed in the ECHR jurisprudence should be relied on and developed to fill that gap. Carter directly and expressly provides that dignity in an Article 12 context has the potential to dislodge the privileging of autonomy. She views the privileging of autonomy as having a damaging influence on States that justify abnegation of responsibility in the name of upholding human rights. Her critique of the 'lazy state' could readily describe the actions (or inaction) of the state in *Grootboom*, *Council for the Welfare of Immigrants* and *D v UK*.

5 SUPPORTED DECISION-MAKING, DECISION-MAKING BY SUBSTITUTES AND DIGNITY

This section considers how the five proposed dimensions of dignity can be used to interpret and apply Article 12, including explaining how decision-making by substitutes can uphold human rights. Five-dimensional dignity is a novel formulation of human dignity, which has drawn from and built on the work of philosophers and lawyers who have endeavoured to develop a definition of human dignity that extends beyond Kantian rationalism.

The literature has ventilated many criticisms of the idea that dignity is or should be a legal principle, and there is indeed some merit in elements of these critiques. One major criticism is that, as both a philosophical and legal principle, dignity is inevitably indeterminate and vague[175] and that it has not infrequently been used to justify opposing arguments in a debate.[176] Related to this is the criticism that dignity does not lend itself to adjudication, especially because its indeterminacy may allow for political considerations to impinge.[177] There have been several defences of these criticisms, and the five-dimensional formulation of dignity proposed in this chapter is intended as a step towards meeting some of them. However, ultimately, because inherent dignity is a recognition of the particularity of people's lives and their embodied selfhood, an 'anthropological' or case-by-case approach to developing dignity is urged.

[175] Liebenberg (n 88) 9–10; Evadné Grant, 'Dignity and Equality' (2007) 7(2) *Human Rights Law Review* 299, 299; Kakoullis and Ikehara (n 2) 53.

[176] McCrudden, 'Human Dignity and Judicial Interpretation of Human Rights' (n 4) 698; Michael (n 33) 24; Hale (n 2) 106; Rosen (n 34) 5.

[177] Gearty (n 38) 255.

The criticisms that dignity is indeterminate and could be shaped by political considerations are similar to arguments made against the recognition of socio-economic rights as 'true' human rights (the criticisms briefly canvassed in Chapter 3).[178] Socio-economic rights have historically been dismissed either as policy or mere political aspirations. However, since the introduction of the Optional Protocol to the ICESCR in 2013,[179] and given the emerging jurisprudence on socio-economic rights and dignity in South Africa, the strength of the criticism that they are not justiciable has been undermined. Furthermore, given the mingling of civil, social, political, economic and cultural rights in the CRPD, the challenge of adjudicating and giving shape to these rights is already pressing. Feldman is ambivalent about the role of dignity as a legal principle because it can lead to socio-economic rights limiting the reach of civil–political rights, including those rights linked with autonomy.[180] However, such uneasiness is, I argue, borne out of a reluctance to embrace the principle of indivisibility.

Grant combats the charge of indeterminism by arguing that in the case of South Africa, the 'malleability of the concept' is ultimately its strength.[181] In examining the particular facts of each case and through a case-by-case approach, the Constitutional Court is gradually developing a line of jurisprudence that will ultimately provide greater determinacy.[182] Because of its central place in human rights, in the text of the CRPD, and disability studies and commentary more widely, an understanding of what is meant by human dignity is imperative to interpret and apply the CRPD, including Article 12. The following discussion of the case of Sesha is offered as a contribution to this developing project.

SESHA

Philosopher Eva Feder Kittay describes her daughter Sesha as a girl and now woman, who 'was diagnosed as having severe to profound retardation'.[183] Kittay describes Sesha as 'enormously responsive, forming deep personal relationships with her family and long-standing caregivers and friendly relations

[178] Ibid 165.

[179] *Optional Protocol to the International Covenant on Economic, Social and Cultural Rights*, opened for signature 24 September 2009, UN Doc A/RES/63/117 (entered into force 5 May 2013).

[180] Feldman (Pt 1) (n 46) 684–6.

[181] See also Carozza, who views the pluralism in the concept of dignity as a strength: 'where there is not a strong practical agreement, grounded in concrete experience, we should tolerate, and indeed embrace, a generous pluralism of understandings across cultures and legal systems. The risk of a hegemonic imposition of one idea of dignity is great' in Carozza (n 63) 629.

[182] Grant, 'Dignity and Equality' (n 175) 319; Carozza argues that dignity's strength is its ability is able to embrace and respond to different cultural practices: Carozza (n 63) 629.

[183] Eva Feder Kittay, 'The Personal Is Philosophical Is Political: A Philosopher and Mother of a Cognitively Disabled Person Sends Notes from the Battlefield' (2009) 40(3–4) *Metaphilosophy* 606, 616.

with her therapists and teachers'. Kittay has written quite a bit about her daughter's love of music, especially but not exclusively classical symphonic music, Beethoven being on the top of her list. Sesha cannot read, and Kittay says that she cannot 'engage in moral reasoning' or 'participate in political life' but that her life is full. It is hard to know what cognitive capacities Sesha possesses because she cannot speak. She also has physical functional limitations, with unsteady legs and no dexterity with a spoon or knife. Kittay is fortunate enough to have the material resources to provide her daughter with carers, therapists and teachers. As an adult, Sesha lives in supported accommodation – a group home with five other young people who are also described as having cognitive and multiple disabilities.[184]

I was presenting a paper at a conference where an audience member asked me a question using Sesha as an exemplum. The question was to the effect of:

> One of Sesha's great joys in life is her love of classical music. Suppose Sesha's family were to be given medical advice that she had a life-threatening condition that could only be remedied by an operation that would cause her total hearing loss. The choice was between saving her life or losing her hearing.
>
> (1) How could I justify imposing a substitute decision under a 'best interests' principle that saved Sesha's life but caused her deafness? And
> (2) Wouldn't it be better to make a 'best interpretation' determination to allow Sesha to die?

The clear assumption behind the questions is that the second option of foregoing the operation would be the autonomous one under Article 12 because it would respect Sesha's will and preferences, respect her life story, and recognise her authentic personhood.

There are multiple other assumptions behind the question – including that a substitute decision-maker, using a 'best interests' approach, would always or necessarily have to decide to save Sesha's life. I don't see why this would be the case, but there are further issues of autonomy and dignity at stake here.

If Sesha were able to decide that life without music was not worth living, then respect for her dignity would require respect for her autonomy to make the grave decision to refuse treatment. However, the ethical lines are much less clear when a supporter assumes that Sesha herself would find her life not worth living with the additional impairment of hearing loss. Certainly, if any of us were confronted

[184] Kittay, 'Equality, Dignity and Disability' (n 32); Kittay, 'At the Margins of Moral Personhood' (n 78); Kittay, 'The Personal Is Philosophical Is Political' (n 183) 624.

with that choice at Sesha's age of forty-something,[185] we would invariably choose the hearing loss. The problem with the 'best interpretation' approach in this case is twofold. First, it feeds into widely held, ableist assumptions that people would rather die than be disabled and that the lives of people with disability are not worth living.[186] Second, it is problematic for such a decision to be made by a supporter (via 'best interpretation') but attributed to Sesha herself. It effectively risks absolving the supporter from accountability and responsibility for the life-and-death decision that they are in reality making for Sesha. So, what is the answer in this vexed scenario?

Dignity is most useful in the 'hard cases' such as this, where autonomy cannot give a certain and transparent answer. My answer would be that the 'supporter', whether a family member, guardian or court, should acknowledge the decision as their own and not Sesha's. The appointment of a substitute decision-maker in itself would recognise Sesha's dignity. It would recognise the embodied nature of her personhood – that she does, in fact, have significant impairments, meaning that she cannot make the decision herself in any material way; she lacks decision-making autonomy. Recognition that a decision is being made by a substitute would, I argue, more clearly respect Sesha's incommensurable worth; the vulnerability of her dependency; the value of her humanity (no matter what the extent of her impairments), and the dignity of her personhood. I argue that this would also acknowledge the dignity and personhood of the substitute decision-maker – that is, the gravity of their role in making this decision on behalf of someone else, not just as their interpreter. The substitute's role (and the supporter's) is more than as an instrumental interpreter.

Much harder is to decide which outcome could be justified as respecting Sesha's dignity. I don't profess to have the answer, but any decision would with great transparency and accountability have to:

1. acknowledge Sesha's equal worth as a human being with or without her sense of hearing;
2. acknowledge that even with total hearing loss, Sesha may have other joys in life – in particular, joys in family relationships – and that she could still bring joy to others;
3. consider how the loss of hearing may dilute her joys and could not be replaced by others;
4. treat Sesha as an end in herself, to ensure that a decision to allow her to die was not merely justified by the convenience of the decision-maker and society, or to save money in the health or service system; and

[185] In 2005 Sesha was thirty-two years old: Kittay, 'Equality, Dignity and Disability' (n 32) 95.

[186] 'There has long been serious concern amongst disabled people and their families that DNR decisions may be made on the basis of false assumptions that the quality of their life would be unacceptable to them.' Anna Lawson, 'The Human Rights Act 1998 and Disabled People: A Right To Be Human?' in Colin Harvey (ed), *Human Rights in the Community: Rights as Agents for Change* (Hart Publishing, 2005) 135, 139.

5. recognise that the strict social model of disability would not justify a decision to allow Sesha's life to end, and that such a decision would flow from recognition of the residual impacts of her severe impairments on her embodied personhood, after all accommodations had been made.

It may seem evasive to leave the question unanswered, but perhaps to provide an answer on an imaginary, abstract scenario would not respect Sesha's dignity. In hard cases, the facts are complex, and the few facts given here are unlikely to be all there are.

One consideration worth mentioning, though, is that, despite Sesha's disadvantages and dependencies, she is indeed fortunate to have joys in her life, especially a loving family who also has personal resources to fund a team of carers and access medical treatment. Without this wide range of intensive health and social supports, Sesha's life – with or without the capacity to hear – would be one of even greater disadvantage, marginalisation and social exclusion. Fulfilment of both her socio-economic and civil–political rights allows Sesha to have the choice of medical treatment, have her dignity respected, and her personhood recognised.

6 OVERVIEW AND CONCLUSION

This chapter has argued for recognising, as a foundation for personhood, a concept of human dignity that includes adults with severe and profound cognitive impairments. Dignity is chosen because it is a value claimed in UN human rights instruments, including the CRPD, to be foundational to all human rights and to be inherent in all human beings. As inherent, it cannot be earned or conferred, but it places demands on us to recognise the dignity in others and ourselves by acting in ways that respect our personhood. Dignity has been said to underpin the CRPD and is referred to in the CRPD more than in any other human rights convention, and yet it is a concept that has been under-explored in both the CRPD and Article 12 literature.

To formulate a concept of dignity that can be used to interpret the CRPD and Article 12, this chapter has considered and adopted key features of dignity as explained and developed by philosophers, lawyers and disability advocates, organising them into 'five dimensions'. The first dimension acknowledges that, as described in human rights instruments, dignity is associated with the equal worth of all humans, and also demands that we treat people as ends, not merely as means. The second dimension recognises the autonomy of those who are capable of autonomy. Dignity is viewed by many as equivalent to autonomy, and as thereby promoting the 'dignity of risk'. However, a growing body of literature is developing dignity as a philosophical value and legal principle, imbuing it with a wider role and meaning than just respect for autonomy. Nussbaum's capabilities approach attempts to develop such a concept by emphasising the material and embodied aspects of human dignity as a basis for personhood. However, it ultimately fails to include

adults with a severe and profound cognitive disability because of its over-reliance on rationality in its conception of human dignity. Other capability or capacity-based conceptions of personhood, including the capacity for sentience, are rejected as either over-inclusive (because they include animals) or under-inclusive by excluding persons with severe cognitive impairments.

The third dimension of human dignity is found in philosophical writings that conceive of the human not as biological but as social personhood, with the essence of being human evident in our interpersonal relations and the meanings we ascribe to being human. These conceptions of human dignity as reflecting the interdependency of personhood also align with the proposals of some care theorists who found an ethic of care on the value of human dignity. This dimension of dignity is reflected in the jurisprudence. For example, in *East Sussex*, the Court considered not just the dignity interests of the claimants but also of the carers. The European Court of Human Rights affirmed in *Pretty* that the ECHR has as its 'very essence … respect for human dignity and human freedom'. The jurisprudence on Article 8 ECHR, Respect for private and family life, finds that while 8(1) recognises dignity as autonomy, respect for autonomy may be subject to Article 8(2) dignity interests, which demand recognition of the rights and freedoms of others. In *Wackenheim*, the Human Rights Committee decided that the dignity constituted by the interests of the wider public (i.e. the dignity of the audience, the community and other people with disability) was violated in the practice of 'dwarf-tossing', which therefore also failed to recognise the dignity of the claimant.

The fourth dimension of dignity is found in its recognition of embodied personhood. Writings about dignity nearly always open with the image of a person's body as tortured, neglected or objectified, and with the material particulars of their situation carefully drawn. These depictions impliedly situate disability within a social model that recognises the residual impacts of the impaired body and mind. These are the hard cases and it is from these hard cases, which are typically marginalised in assertions of universal legal capacity, that the essential features of dignity and of what it means to be a person can be ascertained.

The fifth dimension of dignity is that it reflects and drives the interdependence and indivisibility of human rights. While dignity is widely recognised as being associated with autonomy and the civil–political rights to legal capacity and freedom from torture, the human rights instruments and jurisprudence recognise that dignity also underpins socio-economic rights. The jurisprudence of the South African Constitutional Court reveals that in the particularities of hard cases, rights to liberty and equality depend on rights to shelter and subsistence. In the UK, the cases reveal that the right to be free from inhuman and degrading treatment is conditional on the fulfilment of the right to access health care.

For the most part, the literature on dignity and Article 12 links dignity with autonomy and equality, with a handful of commentators proposing wider definitions. These include the following: dignity as the ability for conscious experience

of the world or to develop purposes, dignity as underpinning the vulnerable subject or person, dignity as a legal principle interpreting the rights of the non-autonomous and dignity as social justice. The idea of dignity as the ability to have conscious experience or to develop purposes is both too wide (includes animals) and too narrow (excludes some adults with a severe and profound cognitive disability). Dignity as underpinning the vulnerable subject has synergies with five-dimensional dignity in recognising the equal worth of human beings and the interdependent and embodied nature of personhood. Dignity as social justice recognises that a human rights framework privileging civil–political rights has failed to promote justice for all adults with cognitive disability. The inclusion of the principle of the indivisibility of human rights as the fifth dimension of human dignity seeks to redress this failure.

This chapter concluded by applying the concept of five-dimensional dignity to situations where Article 12 is engaged, and the ethics and justice of privileging autonomy are clearly challenged. There will never be an easy resolution to the dilemmas posed by all of the hard cases, but it is nevertheless proposed that dignity can start to provide answers. It can recognise the personhood of the non-autonomous and offer transparency and accountability for how we make decisions with and for them. On an equal basis with others, adults with a severe and profound cognitive disability require recognition of equal dignity, equal personhood, and legal capacity. The principle of equality – what it means in the CRPD and how it applies in interpreting Article 12 – is the subject of the next chapter.